

At an ^{1st} Term, part _____ of
the Supreme Court of the County of
Cortland held in the Cortland Supreme
Court in the city of Cortland, New York on
the 17th day of November,
20 23.

PRESENT: ~~HON.~~ HON. MARK G. MASLER
SUPREME COURT OF THE STATE OF NEW YORK

-----X
MORTGAGE ASSETS MANAGEMENT, LLC

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

Plaintiff

INDEX #: EF21-252

vs

JOHN BRAY AS HEIR TO THE ESTATE OF
JANET T. RAZY WHO WAS SURVIVING
TENANT BY ENTIRETY TO RICHARD J.
RAZY, ANNETTE REASOR AS HEIR TO
THE ESTATE OF JANET T. RAZY WHO
WAS SURVIVING TENANT BY ENTIRETY
TO RICHARD J. RAZY, KEVIN RAZY AS
HEIR TO THE ESTATE OF JANET T. RAZY
WHO WAS SURVIVING TENANT BY
ENTIRETY TO RICHARD J. RAZY, KATHY
HATFIELD AS HEIR TO THE ESTATE OF
JANET T. RAZY WHO WAS SURVIVING
TENANT BY ENTIRETY TO RICHARD J.
RAZY, UNITED STATES OF AMERICA
ACTING THROUGH THE SECRETARY OF
HOUSING AND URBAN DEVELOPMENT,
PEOPLE OF THE STATE OF NEW YORK

MORTGAGED PREMISES:
3394 Gunzen Drive
Cortland, NY 13045

Mortgage Servicer:
PHH Mortgage Corporation
Mortgage Servicer Phone Number:
866-799-7724

Defendant(s)

-----X
UPON the Summons, Complaint and Notice of Pendency filed in this action on May 6,
2021, the Notice of Motion dated October 24, 2023 and the Affirmation by Amy L. Mozg, Esq. dated October 24, 2023

MGM



2023-08028

12/05/2023 12:31:16 PM

COURT & TRUST
Elizabeth Larkin, County Clerk

the Affidavit of Merit and Amount Due by Lisa Silva who is Contract Management Coordinator of PHH Mortgage Corporation ("PHH"), Servicer for Mortgage Assets Management, LLC, the Assignee of Nationstar Mortgage LLC D/B/A Champion Mortgage Company, duly sworn to Carrie E. Priebe on June 27, 2023, together with the Exhibits annexed hereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the Defendants herein has been duly served with the Summons and Complaint, and voluntarily appeared personally or by an attorney and did not serve an answer to the Complaint or; failed to appear and the time to do so was not extended; and it appearing that more than the legally required number of days elapsed since Defendants John Bray, Annette Reasor, Kevin Razy, Kathy Hatfield, United States of America acting through the Secretary of Housing and Urban Development and People of the State of New York who did not answer or appear were so served and/or appeared; and Plaintiff having established to the Court's satisfaction that a judgment against Defendants is warranted; and

UPON the Affidavit of Mailing reflecting compliance with CPLR §3215(g)(3)(iii); and

UPON proof that the non-appearing defendants John Bray, Annette Reasor, Kevin Razy, Kathy Hatfield and People of the State of New York are not absentee; in accordance with RPAPL § 1321(2); and

UPON a Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Edward W. Goehler, Esq. dated October 02, 2023, showing the sum of \$156,766.78, due as of May 16, 2023, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Amy L. Mozg, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all aspects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and ~~as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expense of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Main

Lobby of the Cortland County Courthouse, 46 Greenbush Street, City of Cortland and to the
pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A hereto
 extent possible, at AM/PM by and under the direction of Edward W. Goehler, MGM

Esq, 11 Groton Ave, Cortland, NY 13045, 607-758-8080 who is appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from Appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with

Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representatives is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representatives; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee cannot conduct the sale within 90 days of the date of the judgment, the time fixed by RPAPL § 1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

MGM

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the Court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase process shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay then percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IDA account in his own name as Referee, in

MGM

accordance with CPLR § 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of the completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a Court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in Said escrow or TOLA account and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

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FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR § 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more. ~~OR~~ In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL § 1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale.

FOURTH: The Referee shall also pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$156,766.78 with interest at the Note rate from May 17, 2023 until entry of this Judgment, together with any advances as provided for in the Note and Mortgage that Plaintiff has made for taxes, insurance, principal, and interest, and any other charges permitted by the terms of the Note and Mortgage or paid to senior mortgagees or to maintain the

Property pending consummation of this foreclosure sale that were not included in the Referee's computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the Note and Mortgage until of entry of this Judgment, and then with interest at the statutory rate until the date the Deed is transferred;

Costs and Disbursements. ~~\$2,946.99~~ ^{\$2,746.99} adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment; MGM

No Additional Allowance. ~~\$50.00~~ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees. ~~\$4,350.00~~ ^{\$2,900} is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment. MGM

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354(4) and in accordance with local County rules regarding Surplus monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked

"First", "Second" and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above; when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that even if the sale proceeds distributed in accordance paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due as set forth in paragraph "Fourth" above, Plaintiff has waived and may not seek to recover a deficiency judgment in accordance with RPAPL§1371; and it is further

ORDERED, ADJUDGED AND DECREED that the property is sold in one parcel in "as is" physical order and condition, subject any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; any rights pursuant to CPLR 317, 2003 and 5015, or any appeal of

the underlying action or additional litigation brought by any Defendant on its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the Court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve the Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Action Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the Court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

ORDERED, that the sale shall be conducted in accordance with the applicable judicial district foreclosure auction plan and rules in effect at the time of the auction; and it is further

~~The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.~~] MG

ENTER,

Dated: December 4, 2023
Cortland, New York

MGML
HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

Elizabeth Larkin



CJ-2023-02048
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JUDGMENT OF FORECLOSURE AND SA:
Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

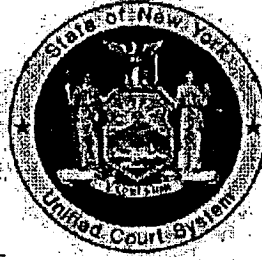
7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At ^{1st} Part II of the Supreme Court
held in and for the County of
CORTLAND, at the Courthouse
located at 46 Greenbush Street, Suite
301, Cortland, NY 13045, on the
30th day of August,
20 23.

PRESENT: HON. MARK G MASLER
JUSTICE OF THE SUPREME COURT

-----X
KEYBANK, NA AS SUCCESSOR BY MERGER TO FIRST
NIAGARA BANK, NA,

Plaintiff,

-against-

JOSEPH E. COOK A/K/A JOSEPH COOK; BANK OF
AMERICA, N.A.; NEW YORK STATE DEPARTMENT
OF TAXATION AND FINANCE; TRINA COOK AS JANE
DOE #1,

Defendants.

Index No. EF20-025

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:
1351 Hauck Hill Road
Cortland, NY 13045

SECTION: 136.00
BLOCK: 02
LOT: 23.100

Mortgage Servicer:
KeyBank NA
Mortgage Service Phone
Number: 866-325-9653

-----X
UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 7th
day of January, 2020, the Amended Notice of Pendency filed on October 10, 2022, the Notice of
dated July 27, 2023, with exhibits thereto,
Motion dated July 27, 2023, the attorney affirmation by Monica G. Christie, Esq., the Affidavit
in Support by Michael Wierzbicki who is a Banking Officer duly sworn to on January 26, 2023,
together with exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of
Foreclosure and Sale; and

GM# 57253.0235



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14 Pages
Elizabeth Larkin, County Clerk

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendants, JOSEPH E. COOK A/K/A JOSEPH COOK; BANK OF AMERICA, N.A.; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE; and TRINA COOK AS JANE DOE #1 were so served; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted, and

UPON the affidavit of mailing reflecting compliance with CPLR § 3215(g)(3)(iii); and

UPON proof that non-appearing defendants are not absent, in accordance with RPAPL §1321(2) and

UPON A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of William J. Pomeroy, Esq. dated July 3, 2023, showing the sum of \$44,186.73 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to received same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Monica G. Christie, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted, and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in

the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge

the mortgage debt, the expenses of the sale, and the costs of this action as provided by the

RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at

pursuant to The Terms of Sale and Foreclosure Auction Plan annexed hereto as Exhibit A
46 Greenbush Street, Suite 301, Cortland, NY 13045, ~~on a date to be set by the court~~, by and

under the direction of William J. Pomeroy, Esq., 16 Tompkins Street, Po Box 828, Cortland, NY

13045, telephone number (607) 756-7501, who is hereby appointed Referee for that purpose; that

said Referee give public notice of the time and place in accordance with RPAPL § 231 in

The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the

sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

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ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the

Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-l of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in Said escrow or IOLA account, and *MGM* shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay];

SECOND: All taxes, assessments, and water rates that are liens upon the

property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$44,186.73 with interest at the ~~note~~ of 3.99% rate from December 31, 2022 until the entry of Judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 3,112.95 adjudged to the Plaintiff for costs and disbursements in this action ~~(add if applicable, as taxed or~~

~~calculated by the Clerk and inserted herein), with interest at the statutory judgment rate from the date of entry of this judgment;~~

MGM
No Additional Allowance: \$ is hereby awarded to Plaintiff in addition to costs, ~~with interest at the statutory judgment rate from the date of entry of this judgment,~~ pursuant to CPLR Article 83;

Attorney Fees: \$ 4,832.50 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph

"Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against the defendants in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the

Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of

sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 1351 Hauck Hill Road, Cortland, NY 13045.

MGM

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~
~~Schedule A.~~

ENTER:

Dated: September, 2023
Cortland, New York

MGM

HON. MARK G MASLER, J.S.C.

Elizabeth Larkin



CJ-2023-01659

09/08/2023 01:33:39 PM

JUDGMENT OF FORECLOSURE AND

Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At Part 1a Term of the Supreme Court of the State of New York, held in and for the County of CORTLAND at the Courthouse thereof, 46 Greenbush Street, Suite 301, Cortland, NY 13045, on the 27th day of September, 2023.

P R E S E N T: Honorable Mark G. Masler, J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

LAKEVIEW LOAN SERVICING, LLC.,

Plaintiff,

vs.

MERWIN ARMSTRONG; FIVE STAR BANK,

Defendant(s).

INDEX NO.: EF22-212

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
7029 RICHMOND HILL ROAD
DE RUYTER, NY 13052

COUNTY: CORTLAND

SBL#: Section 22.00,
Block 04, Lot 05.200

Servicer: LoanCare, LLC
Servicer Telephone: (800) 909-9525



2023-06321
10/11/2023 03:37:31 PM

COURT & TRUST
Elizabeth Larkin, County Clerk

UPON the Summons, Complaint and Notice of Pendency filed in this action on May 10, 2022, the Notice of Pendency refiled on December 22, 2022, the Notice of Motion dated August 25, 2023, the affirmation of Oluwatobi Adedokun, Esq. dated August 25, 2023 the affidavit of merit and amount due by Linda Brown who is an Assistant Secretary of LOANCARE LLC, duly sworn to on March 21, 2023; together with the exhibits attached thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the Defendants herein have been duly served with the Summons and Complaint in this action, and have not served any answer to the Complaint or otherwise

appeared, nor had their time to so do extended; and it appearing that more than the legally required number of days had elapsed since said Defendants MERWIN ARMSTRONG and FIVE STAR BANK were so served and/or appeared; and Plaintiff having established to the court's satisfaction that judgment against the defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants MERWIN ARMSTRONG and FIVE STAR BANK are not absent, in accordance with RPAPL §1321(2);

AND the court having held a mandatory settlement conference in this action pursuant to CPLR §3408.

A settlement was not reached and the case was released from the settlement conference part on . *January 23, 2023.*

A Referee having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Michael R. Cardinale, Esq. dated August 03, 2023, showing the sum of \$139,793.86 due as of March 14, 2023 and that the mortgaged property cannot be sold in parcels; and

UPON proof of due notice of this application upon all parties entitled to receive same, and upon all of the prior proceedings and papers filed herein; and

NOW on motion of Oluwatobi Adedokun, Esq., who is an associate of Robertson, Anschutz, Schneid, Crane & Partners, PLLC, attorneys for Plaintiff, it is hereby

ORDERED that the motion is granted; without opposition and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint in this action ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by

the RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at public auction

at the Cortland County Courthouse pursuant to the Terms of Sale and Foreclosure Auction Plan attached hereto by and under the

direction of Michael R. Cardinale, Esq. who is hereby appointed Referee for that purpose; that said

Referee give public notice of the time and place of sale in accordance with RPAPL §231 in

The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment"), and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in his escrow or TOLA account, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), in the sum of \$750.00 in the event a sale was canceled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be held responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$139,793.86 with interest at the note rate from March 14, 2023, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 1,845.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

No Additional Allowance: \$ is hereby awarded to the Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 3,500.00 is hereby awarded to the Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the

bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds; and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third" and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against MERWIN ARMSTRONG in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED, AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any state of facts that an inspection of the property would disclose; any state of facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR §317, §2003 and §5015 or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property on production of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR §308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within thirty days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless the Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain

the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 7029 RICHMOND HILL ROAD, DE RUYTER, NY 13052.

~~MGM The legal description of the mortgaged property referred to herein is annexed hereto as Schedule "A".~~

DATED: October 10 2023
Cortland, New York

ENTER:

MGM

Hon. MARK G. MASLER
Supreme Court Justice

Brooke Keman - Deputy
Brooke Keman



CJ-2023-01797

10/11/2023 03:37:31 PM

JUDGMENT OF FORECLOSURE AND
Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At an I.A.S. Term, part _____ of the Supreme Court of the County of Cortland held in the Cortland Supreme Court in the city of Cortland, New York on the 28th day of September, 2023.

PRESENT: HON. EUGENE D. FAUGHNAN
SUPREME COURT OF THE STATE OF NEW YORK

-----X
REVERSE MORTGAGE SOLUTIONS, INC.

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

Plaintiff

INDEX #: EF18-527

vs

EDWARD R. PURSER, UNITED STATES OF
AMERICA ACTING THROUGH THE
SECRETARY OF HOUSING AND URBAN
DEVELOPMENT, NEW YORK STATE
DEPARTMENT OF TAXATION AND
FINANCE

MORTGAGED PREMISES:
44 HAMLIN STREET
CORTLAND, NY 13045

Mortgage Servicer:
PHH Mortgage Corporation
Mortgage Servicer Phone Number:
866-799-7724

Defendant(s)

-----X

Upon the Summons, Complaint and Notice of Pendency filed in this action on May 9, 2018, Notice of Motion dated March 17, 2022, and the affirmation by Monica G. Christie, Esq. the affidavit of merit and amount due by Nicole Johnson who is an authorized Signer of Reverse Mortgage Solutions, Inc., duly sworn to Deneen D. Sowell on August 2, 2018, together with Exhibits annexed hereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

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COURT & TRUST
Elizabeth Larkin, County Clerk

Upon proof that each of the defendants herein was served with the Summons and Complaint, and voluntarily appeared personally or by an attorney and did not serve an answer to the Complaint or; failed to appear and the time to do so was not extended; and it appearing that more than the legally required number of days elapsed since defendants New York State Department of Taxation and Finance who did not answer or appear were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

Upon the affidavit of mailing reflecting compliance with CPLR §3215(g)(3)(iii); and

Upon proof that the non-appearing defendant, New York State Department of Taxation and Finance is not absentee, in accordance with RPAPL § 1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Dante Armideo, Esq. dated March 1, 2022, showing the sum of \$100,821.32, due as of July 31, 2018, and that the mortgaged property may not be sold in parcels; and

Upon proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Monica G. Christie, Esq., attorney for the Plaintiff, it is hereby ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all aspects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expense of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Cortland County Courthouse ~~and to the extent possible, at~~ AM/PM; by and under the direction of Dante Armideo, Esq., 39 Church Street, Cortland, NY 13045-2882, (607) 758-8200 who is appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in Cortland Standard; that said and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from Appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representatives is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representatives; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee cannot conduct the sale within 90 days of the date of the judgment, in accordance with CPLR § 2004, for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase process shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay then percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in his SOLA account Referee, in accordance with CPLR § 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of the completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in HS SOL Account and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR § 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more OR in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL § 1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale.

FOURTH: The Referee shall also pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report. \$100,821.32 with interest at the note rate from December 17, 2014 to July 31, 2018, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

1,924.61

Costs and Disbursements. ~~\$1,927.75~~ adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance. ~~\$50.00~~^{\$0} is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees. ~~\$7,675.00~~^{6,925.00} is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment.

FIFTH: Surplus monies arising from the sale shall be paid into court

by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354(4) and in accordance with local County rules regarding Surplus monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second" and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the

balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Edward R. Purser in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the property is sold in one parcel in "as is" physical order and condition, subject any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; any rights pursuant to CPLR § 317, § 2003 and § 5015, or any appeal of the underlying action or additional litigation brought by any defendant on its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR § 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties entitled to service, including the Referee appointed herein; and it is further.

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve the Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and

the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Action Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

ORDERED, that the sale shall be conducted in accordance with the applicable judicial district foreclosure auction plan and rules in effect at the time of the auction; and it is further

The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.

Dated: Sept 28, 2023

Cortland, New York

ORDERED, ADJUDGED and DECREED that the foreclosure auction shall be scheduled and conducted in accordance with the Sixth Judicial District Foreclosure Auction Plan, a copy of which can be found at <http://ww2.nycourts.gov/foreclosure-information-31001>.


HON EUGENE D. FAUGHNAN
JUSTICE OF THE SUPREME COURT





CJ-2023-01803

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JUDGMENT OF FORECLOSURE AND
Elizabeth Larkin, County Clerk

Schedule A - Legal Description

THAT tract or parcel of land, situated in the City of Cortland, County of Cortland and State of New York, bounded and described as follows:

BEGINNING at a point on the inside of the sidewalk on Hamlin Street a distance of eighty-three (83) feet from the inside of the sidewalk on Madison Street and at the northwest corner of lands (formerly) owned by Mahan (now Fitzgerald); and

RUNNING THENCE Easterly on a line parallel with Madison Street one hundred Eight (108) feet to a point.

THENCE RUNNING Northerly along a line parallel to the east line of Hamlin Street a distance of one hundred (100) feet to a point.

THENCE RUNNING Westerly along the southern boundary line of lands (formerly) of Wesley V. Hickman and wife (now Clark), and parallel to the northerly line of Madison Street one hundred eight feet (108) to a point.

RUNNING THENCE Southerly along the inside of the sidewalk on Hamlin Street one hundred (100) feet to the place of BEGINNING.

TOGETHER with the east half of Hamlin Street which abuts upon the said premises subject to its use for street and highway purposes.

EXCEPTING AND RESERVING a triangular portion of land beginning at a point on the inside of the sidewalk on Hamlin Street at the northwest corner of properties described in a deed from Warren and Florence Bowdish to Donald C. and Teresa M. Kerwin, dated August 21, 1936, recorded September 8, 1936 in Book 176 of Deeds at page 507 of the Cortland County Clerk's Office, said point of beginning being marked by an iron pipe;

RUNNING THENCE Easterly on a 90 degree angle with the east walk line of Hamlin Street a distance of 107.88 feet to the east line of said property;

RUNNING THENCE Northerly along the east line of said property a distance of 4.96 feet to an iron pipe marking the northeast corner of said property;

RUNNING THENCE Westerly along the north line of said property (being Clark's south line) a distance of 108.0 feet to the point or place of beginning, being a triangular piece of land along the westerly side of said property and adjoining the property of the said Clarks as conveyed by Donald C. Kerwin to William W. and Susan A. Clark by deed dated November 28, 1969, recorded in the Cortland County Clerk's Office December 12, 1969 in Book 318 of Deeds at page 505.

At Part 4 Term of the SUPREME Court, held in the County of Cortland at the Cortland Co. Courthouse thereof, on the 22nd day of September, 20 23

PRESENT: Hon. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

-----X
PMIT RHI 2021-B LLC,

Plaintiff,

INDEX NO.: EF21-369
Mortgage Servicer as of 2023:
Rushmore Loan Management
Services, LLC
Telephone Number: 1-888-504-6700

ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE
MORTGAGED PROPERTY:
747 Route 222, Cortland, NY 13045
SBL #: 85.19, 01, 37.000

-v-
Julie Randall,

Defendants.
-----X

UPON the Summons, Complaint and Notice of Pendency filed in this action on July 14, 2021, the Notice of Motion dated July 18, 2023, the affirmation by Kristina Negri, Esq., dated July 14, 2023 16M the affidavit of merit and amount due by Alicia Stewart, who is Assistant Vice President of Rushmore Loan Management Services, LLC, duly sworn to on January 24, 2023, together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since said Defendant, Julie Randall was so served and/or appeared; and Plaintiff having

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COURT & TRUST
Elizabeth Larkin, County Clerk

established to the court's satisfaction that a judgment against defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(i); and

UPON proof that non-appearing defendant, Julie Randall is not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of John Ardin Delvecchio, Esq. dated May 31, 2023, showing the sum of \$151,360.34 due as of December 30, 2022 and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by, Kristina Negri, Esq., attorney for Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, that the terms of the judgment of foreclosure and sale, pertaining to the location of the sale and the process by which said sale will be conducted, shall hereby conform to any changes imposed by the 6th Judicial District so that the sale is to occur in accordance with the district sale rules in place as of the time of the sale; and it is further

MGM
~~ORDERED, that the Plaintiff or Referee seeking to schedule a foreclosure auction shall submit request for a date and time to the Supreme Court Clerk of Cortland County; and it is further~~

~~ORDERED, that the Supreme Court Clerk of Cortland County respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction; and it is further~~

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the

MGM
RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at a public auction

Cortland County Courthouse pursuant to the Terms of Sale and Foreclosure Auction
at the location provided by the Supreme Court Clerk, by and under the direction of John Ardin Plan attached hereto

Delvecchio, Esq. 4030 West Road, Cortland, NY 13045-1841, (607) 299-4796 who is hereby

appointed Referee for that purpose; and it is further

ORDERED, ADJUDGED AND DECREED, ~~that express prior approval must be given to Referee or Plaintiff by the Supreme Court Clerk to schedule, advertise, or conduct a~~

~~foreclosure auction and that said Referee give public notice of the time and place of sale in~~

accordance with RPAPL §231 in The Cortland Standard

_____ ; and it is

further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2[c]) ("Disqualifications from

Appointment"), and §36.2(d) ("Limitations on appointments based upon compensation"), and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale of the Referee has received a written bid and Terms of Sale from Plaintiff, its successors, and/or assigns, or its representative as if Plaintiff were physically present to submit said bid ; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of the sale the Referee shall accept a written bid from the Plaintiff or Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED, that the Terms of Sale be posted before the auction begins, and that the Referee afford the prospective bidders time to review the Terms of Sale; and it is further

ORDERED, ADJUDGED AND DECREED, that all bidders provide proof of identification and stand and state their names at the time their bid is made; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash (at the referee's discretion) or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the bidder risks loss of future bidding privileges and the court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IDLA account MEM
~~any local banking institution insured by the~~
~~FBI~~ in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of the sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in an escrow or sold account ~~any local banking institution insured~~ ^{MEM} by the FDIC, and shall thereafter make the following payments in accordance with RPAPL§1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more OR in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$151,360.34 with interest at the note rate from December 31, 2022 until the entry of judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for

said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$ 1585.00 adjudged to the Plaintiff for costs and disbursements in this action, as taxed or calculated by the Clerk and inserted herein, with interest at the statutory judgment rate from the date of entry of this judgment;

No Additional Allowance: \$ _____ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that is the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts

specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Julie Randall and Joey Randall in accordance with RPAPL §1371 if permitted by law; and it further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or person in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property

within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; the Terms of Sale and purchaser assumes all risk of loss or damage to the premises from the date of the foreclosure sale until the date of closing and thereafter; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding the handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within 6 months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

Said property is commonly known as 747 Route 222, Cortland, NY 13045.

MGM The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.

DATED: October 10, 2023
Cortland, New York

ENTER:

MGM
Hon. Mark G. Masler
J.S.C.

Our File No.: 01-093472-F00

Brooke Kernan - Deputy
Brooke Kernan



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JUDGMENT OF FORECLOSURE AND
Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmlackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At an ~~IAS~~ Part — of the Supreme Court of the State of New York held in the County of Cortland at the Courthouse, located at Courthouse, 46 Greenbush Street, Cortland, NY 13045-2772 on September 29, 2023.

PRESENT: Hon. Mark G. Masler,
JUSTICE OF THE SUPREME COURT

US BANK TRUST NATIONAL ASSOCIATION,
NOT IN ITS INDIVIDUAL CAPACITY BUT
SOLELY AS OWNER TRUSTEE FOR VRMTG
ASSET TRUST,

Plaintiff,

-against-

NANCY CAUGHEY A/K/A NANCY
CLEVELAND AS EXECUTOR AND HEIR OF
THE ESTATE OF THE LATE PAUL C.
CLEVELAND; MARYBETH CLEVELAND
A/K/A MARY AUSTIN AS EXECUTOR AND
HEIR OF THE ESTATE OF THE LATE PAUL C.
CLEVELAND; STATE OF NEW YORK,

Defendants.

Index No. EF21-233

**ORDER CONFIRMING REFEREE'S
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
42 EVERGREEN ST
CORTLAND, NY 13045

SBL #: 86.24-02-33.000

Servicer: NewRez LLC, F/K/A New Penn
Financial, LLC, D/B/A Shellpoint Mortgage
Servicing
800-365-7107

UPON the Summons, Complaint, and Notice of Pendency filed in this action on April 29, 2021, with proof of due service thereof; the Notice of Motion and Affirmation by Mark R. Knuckles, Esq. both dated August 9, 2023, the affidavit of amount due by Mary Monta-Adrovel, Document Verification Specialist of NewRez LLC, F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing, the servicer and attorney-in-fact for US Bank Trust National Association, not in its individual capacity but solely as Owner Trustee for VRMTG Asset Trust, the Plaintiff herein, duly sworn to on June 14, 2023, together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the Defendants herein has been duly served with the Summons or Summons and Complaint in this action and has voluntarily appeared either personally or by an attorney, or has not served any answer to the Complaint or otherwise appeared, nor had their time to do so been

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COURT & TRUST
Elizabeth Larkin, County Clerk

extended; and it appearing that more than the legally required number of days has elapsed since the Defendants captioned herein were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against the Defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3); and

UPON proof that the non-appearing Defendants are not absent, in accordance with RPAPL § 1321(2); and

UPON a Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of James J. Baranello, Esq., dated July 14, 2023, showing the sum of \$124,147.49 due as of May 31, 2023 as more fully set forth in said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein; and

NOW, on motion by Mark R. Knuckles, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90

days of the date of this Judgment, in one parcel, at a public auction at The Cortland County Courthouse pursuant to the Terms of Sale ^{and Foreclosure Auction Plan attached hereto}, by and under the direction of James J. Baranello, Esq., 39 Church Street, Cortland, NY 13045, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance

with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment") and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, by certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment

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and proceeds of sale, as necessary, in an escrow or TOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in his escrow or TOLA account, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), in the sum of \$750.00. In the event a sale was cancelled or postponed, Plaintiff shall compensate the

Referee in the sum of \$ 250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:
Amount due per Referee's Report: \$124,147.49 with interest at the note rate from June 1, 2023, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 1895.00 adjudged to the Plaintiff for costs and disbursements in this action to be taxed by the Clerk and inserted herein, with interest at the statutory judgment rate from the date of entry of this judgment;

N. Additional Allowance: \$ _____ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$5,225.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be deposited with the Cortland County Clerk by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and

possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the Cortland County Clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that the Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

3000-001117/NANCY CAUGHEY

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 42 EVERGREEN ST, CORTLAND, NY 13045.

MGM The legal description of the mortgaged property referred to herein is annexed hereto as Schedule
~~A.~~

DATED: October 10, 2023
Cortland, New York

ENTER:

MGM

Hon. MARK G. MASLER
Supreme Court Justice

Brooke Kernan - Deputy
Brooke Kernan



CJ-2023-01799

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JUDGMENT OF FORECLOSURE AND
Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At a Term of the SUPREME Court, held
in the County of Cortland at the Cortland
Courthouse, on the 10th day of October,
2023.

PRESENT: HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

-----X
PennyMac Loan Services, LLC,

Plaintiff(s),

INDEX NO.: EF23-043

Mortgage Servicer as of 2023:
PennyMac Loan Services, LLC
Telephone Number: 1-888-870-
6229

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
3438 South Hill Road, McGraw, NY
13101
SBL #: 98.00, 04, 14.000

-v-

Iva C. Little, Timothy D. Grant, Secretary of Housing and
Urban Development, Vaughn Long, Jason Wagner, Kayli
Marshall, Tashia Fink,

Defendant(s).

-----X
UPON the Summons, Complaint and Notice of Pendency filed in this action on January 27,
2023, Notice of Pendency re-filed on April 13, 2023, the affirmation by Linda P. Manfredi, Esq. / the dated September 13, 2023
affidavit of merit and amount due by Stormy Price, who is Authorized Representative of PennyMac
Loan Services, LLC, duly sworn to on June 20, 2023, together with the exhibits annexed thereto, all in
support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and
Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor



2023-06324
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COURT & TRUST
Elizabeth Larkin, County Clerk

had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since said Defendants, Iva C. Little, Timothy D. Grant, Secretary of Housing and Urban Development, Vaugh Long, Jason Wagner, Kayli Marshall, and Tashia Fink, were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(I); and

UPON proof that non-appearing defendants, Iva C. Little, Timothy D. Grant, Secretary of Housing and Urban Development, Vaugh Long, Jason Wagner, Kayli Marshall, and Tashia Fink, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of JOHN ARDIN DELVECCHIO, ESQ. dated August 28, 2023, showing the sum of \$87,405.12 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by, Linda P. Manfredi, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

And it is further

MGM
ORDERED, that the terms of the judgment of foreclosure and sale, pertaining to the location of the sale and the process by which said sale will be conducted, shall hereby conform to any changes imposed by the 6th Judicial District so that the sale is to occur in accordance with the district sale rules in place as of the time of the sale; and it is further

ORDERED, that the Plaintiff or Referee seeking to schedule a foreclosure auction shall submit request for a date and time to the Supreme Court Clerk of Cortland County; and it is further

ORDERED, that the Supreme Court Clerk of Cortland County respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction; and it is further

MGM
ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at a public auction pursuant to the Terms of Sale and Foreclosure Auction Plan attached hereto at the location Cortland County Courthouse provided by the ~~Supreme Court Clerk~~ by and under the direction of JOHN ARDIN

DELVECCHIO, Esq. 4030 WEST RD, CORTLAND, NY 13045-1841, (607) 299-4796 who is hereby appointed Referee for that purpose; and it is further

ORDERED, ADJUDGED AND DECREED, ~~that express prior approval must be given to Referee or Plaintiff by the Supreme Court Clerk to schedule, advertise, or conduct a foreclosure auction and that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in~~

The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2[c]) ("Disqualifications from Appointment"), and §36.2(d) ("Limitations on appointments based upon compensation"), and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale of the Referee has received a written bid and Terms of Sale from Plaintiff, its successors, and/or assigns, or its representative as if Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of the sale the Referee shall accept a written bid from the Plaintiff or Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED, that the Terms of Sale be posted before the auction begins, and that the Referee afford the prospective bidders time to review the Terms of Sale; and it is further

ORDERED, ADJUDGED AND DECREED, that all bidders provide proof of identification and stand and state their names at the time their bid is made; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash (at the referee's discretion) or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the bidder risks loss of future

bidding privileges and the court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit; and it is further

MSM [**ORDERED, ADJUDGED AND DECREED** that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IDLA account ~~any local banking institution insured by the~~ ~~FDIC~~ in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at

the time of the sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee ^{in an escrow or sold account} ~~in any local banking institution insured by~~ ^{MEM} the FDIC, and shall thereafter make the following payments in accordance with RPAPL§ 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more OR in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$87,405.12 with interest at the note rate from July 1, 2023 until the entry of judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$ 3,695.00 adjudged to the Plaintiff for costs and disbursements in this action, as taxed or calculated by the Clerk and inserted herein, with interest at the statutory judgment rate from the date of entry of this judgment;

No Additional Allowance: \$ _____ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that is the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Iva C. Little and Timothy D. Grant in accordance with RPAPL §1371 if permitted by law; and it further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or person in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; the Terms of Sale and purchaser assumes all risk of loss or damage to the premises from the date of the foreclosure sale until the date of closing and thereafter; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court,

the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding the handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL § 1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within 6 months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

Said property is commonly known as 3438 South Hill Road, McGraw, NY 13101.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~

~~Schedule A.~~

DATED: October 10, 2023
Cortland, New York

ENTER:

Hon. MARK G. MASLER
J.S.C.

Brooke Kernan Deputy
Brooke Kernan

Our File No.: 01-097048-F00



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JUDGMENT OF FORECLOSURE AND
Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	TiogaSupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

1a Term
At Part 1a of the Supreme Court of
the State of New York, held in and for
the County of CORTLAND at the
Courthouse, at 46 Greenbush Street,
Cortland, NY on the 22nd day of
September, 2023

PRESENT: HON. MARK G. MASLER
Justice of the Supreme Court

WILMINGTON SAVINGS FUND SOCIETY, FSB, AS
TRUSTEE OF UPLAND MORTGAGE LOAN TRUST A

Plaintiff,

-against-

ROGER STANDISH A/K/A ROGER D. STANDISH;
BONNIE STANDISH A/K/A BONNIE G. STANDISH
A/K/A BONNIE BUSH A/K/A BONNIE G. BUSH; CRAIG
L. STANDISH, CO-ADMINISTRATOR CTA OF THE
ESTATE OF BARBARA A. STANDISH A/K/A
BARBARA STANDISH; TERRY A. STANDISH, CO-
ADMINISTRATOR CTA OF THE ESTATE OF
BARBARA A. STANDISH A/K/A BARBARA
STANDISH; CORTLAND REGIONAL MEDICAL
CENTER F/K/A CORTLAND MEMORIAL HOSPITAL;
NIAGARA MOHAWK POWER CORP DBA NATIONAL
GRID; RIEHLMAN & SHAFER LLC DBA RIEHLMAN
SHAFER AND SHAFER; E & V ENERGY
CORPORATION; CHASE BANK USA, NA; ST. JOSEPHS
HOSPITAL HEALTH CENTER; NBT BANK,
NATIONAL ASSOCIATION; ASHLEY DUGAS; DREW
TRAVIS; SHARYN K. LIENEMANN; BREONA
KEATER,

Defendants.
_____X

**JUDGMENT OF
FORECLOSURE AND
SALE**

Index No.: EF19-1397

Foreclosure of:
1371/1373 ROUTE 41
WILLET, NY 13863
AND
1363 ROUTE 41
WILLET, NY 13863

Section: 151.12
Block: 01
Lot(s): 17 & 18

Mortgage Servicer Name:
Carrington Mortgage Services
LLC
Mortgage Servicer Phone #:
800-561-4567

On the Summons, and Verified Complaint duly filed in this action on NOVEMBER 22,
2019, the Notice of Motion dated August 25, 2023, the Affirmation of Denise Singh Skeete, Esq.
counsel for the plaintiff, dated August 25, 2023, the Testimony Before Referee by Elizabeth Corral
Default Fulfillment Manager for CARRINGTON MORTGAGE SERVICES LLC sworn to July

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COURT & TRUST
Elizabeth Larkin, County Clerk

17, 2023 together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendants, with the exception of ROGER STANDISH A/K/A ROGER D. STANDISH and BONNIE STANDISH A/K/A BONNIE G. STANDISH A/K/A BONNIE BUSH A/K/A BONNIE G. BUSH, were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that the non-appearing defendants are not absent, in accordance with RPAPL §1321 (2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON, on reading and filing the report of Edward W. Goehler Esq. the Referee named in said Order of Reference, by which Report, dated August 21, 2023 ^{showing} attached hereto, it appears that the sum of \$138,078.50 was due as of June 30, 2023 and that the mortgaged premises should be sold in one parcel, MGM

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion of Denise Singh Skeete, Esq., attorney for the plaintiff, it is

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Report of Edward W. Goehler Esq. dated August 21, 2023, is hereby amended to state that the total interest due from March 1, 2021, to June 30, 2023, is \$6,801.90, and the total sum due on June 30, 2023, was \$134,568.27, and is hereby ratified and confirmed as so amended; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be MGM sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction pursuant to the Terms of Sale attached as Exhibit A hereto (the Terms of Sale) and the Sixth Judicial District Foreclosure Auction Plan, a copy of which is also attached to this Judgment, at the Cortland County Courthouse by and under the direction of Edward W. Goehler, Esq., 11 Groton Avenue, Cortland, New York 13045, (607) 758-8080, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without

compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED, that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED, that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiffs attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED, that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee shall then deposit the

down payment and proceeds of sale, as necessary, in an IDLA or escrow account in his/her *MCM* own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED, that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED, that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-I of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance

of said proceeds of sale in her/his own name as Referee in 1 said TOLA or escrow account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$1750 unless the property sells for \$50,000.00 or more;

In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$134,568.27 with interest at the note rate from June 30, 2023 March 1, 2021 until the date the interest was calculated to in said Report, to the date of

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entry of this Judgment Order, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 2,195 adjudged to the Plaintiff for costs and disbursements in this action ~~(add if applicable, as taxed or calculated by the Clerk and inserted herein)~~, with interest at the statutory

judgment rate from the date of entry of this judgment;

No Additional Allowance: \$ _____ is hereby awarded to Plaintiff

in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED, that if the Plaintiff is the purchaser of

the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED, that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any,

except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiffs' attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 1371/1373 ROUTE 41, WILLET, NY 13863 and 1363 ROUTE 41, WILLET, NY 13863.

~~The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.~~

ENTER:

MGM

HONORABLE MARK G. MASLER, J.S.C.

Dated: September 27, 2023
Cortland, New York

Brooke Kemak - Deputy
Brooke Kemak



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JUDGMENT OF FORECLOSURE AND SALE
Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At Part after of the Supreme Court held in
the County of Cortland, at the Cortland
Courthouse thereof, on the 20th day of
August, 2021.

PRESENT: Hon. Eugene D. Faughnan, J.S.C.
JUSTICE OF THE SUPREME COURT

Wells Fargo Bank, N.A.,

Plaintiff(s),

v.

Earl M. Carnegie; Town of Cortlandville,

Defendant(s).

INDEX NO. EF22-359

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:
2297 Blodgett Mills Road
Blodgett Mills, NY 13738

SBL #: Section 97.04 Block 02
Lot 33.00

Mortgage Servicer: Wells
Fargo Asset Management Call
Center

Mortgage Servicer Phone #:
(877) 617-5274

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 22nd day of August, 2022, on the Additional Notice of Pendency filed on the 4th day of November, 2022, the Notice of Motion dated June 30, 2023, the affirmation by Barbara Dunleavy, Esq., the affidavit of merit and amount due by Kacie Noelle Erwin, who is Vice President Loan Documentation, duly sworn to on January 27, 2023, together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale, and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally

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Judgment of Foreclosure and Sale

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COURT & TRUST
Elizabeth Larkin, County Clerk



required number of days has elapsed since defendants, Earl M. Carnegie and Town of Cortlandville, were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(ii); and

UPON proof that non-appearing defendants, Earl M. Carnegie and Town of Cortlandville, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Maureen A. Byrne Esq. dated May 30, 2023, showing the sum of \$41,160.04 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by LOGS Legal Group LLP f/k/a Shapiro, DiCaro & Barak, LLC, attorneys of record for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold within 90 days of the date of this Judgment, in one parcel, at a public auction at

the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of Maureen A Byrne, Esq., PO Box 427, Norwich, NY 13815, (607)334-8150 who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in *the Cortland Standard*; and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351 (1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in the Referee's I.O.L.A. account maintained for legal clients, in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents or water rates, which are, or may become, liens on the property at the time of sale with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in their I.O.L.A. account maintained for legal clients, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250.00 for each adjournment or cancellation, unless the Referee caused the delay.

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes,

assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$41,160.04 with interest at the note rate from January 26, 2023 until the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$1,780.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ _____ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$3,475.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and funds shall be deposited with the Clerk of the Court; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due to Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the

time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Earl M. Carnegie, unless discharged in bankruptcy, in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the

filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

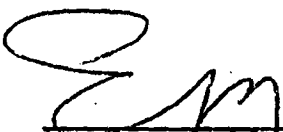
ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 2297 Blodgett Mills Road, Blodgett Mills, NY 13738.

The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.

CA **ORDERED, ADJUDGED and DECREED** that the foreclosure auction shall be scheduled and conducted in accordance with the Sixth Judicial District Foreclosure Auction Plan, a copy of which can be found at <http://ww2.nycourts.gov/foreclosure-information-31001>.

DATED: Aug 29, 2023


Hon. Eugene D. Faughnan, ~~X~~J.S.C.
Justice of the Supreme Court





CJ-2023-01665
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JUDGMENT OF FORECLOSURE AN

Elizabeth Larkin, County Clerk

Attorney certification pursuant
to 22NYCRR §130-1.1-a
is affixed to inside cover.

SCHEDULE A
Intended Legal Description

All that tract or parcel of land, situate in the Town of Cortlandville, County of Cortland and State of New York, being part of Lot Ninety-Seven (97) in said town and bounded as follows:

Beginning at a point on the center line of the Blodgett Mills Road, the said point is 207.30 feet distant Northwesterly measured along the center line of the said road from the West right of way of the Erie Lackawanna R.R. Land, thence N 73° 00' W, along the center line of the said road, a distance of 82.50 feet to a point, thence N 15° 00' E along the East property line of Albert Henry, a distance of 188.0 feet to an iron pin set in the ground, thence S 73° 00' E, along the South property line of Albert Henry, a distance of 82.50 feet to an iron pin set in the ground, thence S 15° 00' W, along the West property line of Conrad Truman, a distance of 188.0 feet to the center line of the Blodgett Mills Road, the point of beginning.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND**

Wells Fargo Bank, N.A.,

Plaintiff(s),

v.

Earl M. Carnegie, Town of Cortlandville,

Defendant(s).

TERMS OF SALE

Index No. EF22-359

MORTGAGED PROPERTY:

2297 Blodgett Mills Road

Blodgett Mills, NY 13738

COUNTY: Cortland

SBL #: Section 97.04 Block 02

Lot 33.00

The Premises, known as 2297 Blodgett Mills Road, Blodgett Mills, NY 13738 (Section 97.04 Block 02 Lot 33.00), and described in the advertisement of the sale and in Exhibit A annexed hereto, will be sold in one parcel by the Referee, Maureen A. Byrne, Esq., upon the following terms:

1. Ten percent of the purchase price for the Premises will be required to be paid for in cash or by a certified check to the Referee at the time and the place of the sale, and for which a receipt will be given.

2. The balance of said purchase price will be required to be paid in cash or by a certified check to the Referee at his office at PO Box 427, Norwich, NY 13815, on _____, at 10:00 a.m., or any other location agreed to by the referee when the Referee's Deed will be delivered. This sale is "Time of the Essence" in regard to Purchaser only. The Referee is not required to send any notice to the Purchaser; and if purchaser fails to call at the time and place above specified to pay the balance of the purchase price and receive the deed, the Purchaser shall be in default. The Plaintiff shall have the option, in its sole discretion and without leave of court, to (1) adjourn the closing at the request of the purchaser at which time

the purchaser will be charged with interest at the prevailing judgment rate from the original sale date (when the final bid was accepted by the referee) through the eventual closing date on the whole amount of the purchase price as well as assuming responsibility for any and all costs incurred as a result of any adjournment of the closing, or (2) elect to re-schedule the foreclosure sale and the ten percent (10%) deposit given by purchaser to the Referee will be retained by the Referee and applied to the proceeds of the rescheduled foreclosure.

3. The Purchaser of the Premises, at the time and the place of sale, shall sign a Memorandum of his purchase, and an Agreement to comply with the terms and conditions of the Time is of the Essence sale herein contained, and if a closing is required and the Referee seeks and is awarded additional fees for said closing, those fees shall be paid by the purchaser.

4. The bidding will be kept open after the premises are struck down, and, in case any purchaser shall fail to comply with any of the above conditions of the sale, the premises so struck down to him will be again put up for sale, under the direction of the Referee, under these same Terms of Sale, without application to this Court (unless the Attorneys for the Plaintiff shall elect to make such application); and, such purchaser will be held liable for any deficiency there may be between the sum for which the said premises shall be struck down upon the sale, and the price for which the premises may be purchased on the resale, plus any costs or expenses incurred for such resale, and, upon the purchaser's default, the bid deposit shall automatically be forfeited and applied to the aforesaid deficiency, if any. Such forfeiture shall not be a waiver of any of the rights of the Plaintiff to seek and obtain damages from the defaulting Bidder.

5. In case the Plaintiff shall be the purchaser, or in the event that the rights of the purchaser shall be assigned to and be acquired by the Plaintiff, and a valid Assignment thereof filed with the Referee, the provisions of the Judgment of Foreclosure and Sale entered herein,

insofar as they relate to such a purchase by or Assignment to the Plaintiff, shall be deemed included in these Terms of Sale, with the same force and effect as if fully set forth at length.

6. The Premises shall be sold in an "as is" physical condition and subject to:

(a) The terms and provisions of the Judgment of Foreclosure and Sale are incorporated by reference herein, with the same effect as fully set forth herein;

(b) Any state of facts an accurate Survey would show;

(c) Covenants, restrictions and Easements, if any, of record affecting said mortgaged Premises;

(d) Any violation of record thereof, and to Zoning Regulations and Ordinances of the City, Town, or Village in which said mortgaged Premises lie, and any violations of record thereof, or prior liens, if any;

(e) The rights, if any, of the United States of America, pursuant to Title 28, Section 2410 of the United States Code;

(f) Any and all tenancies, possessory interests and/or leases affecting said premises whether or not they were made party defendants; and

(g) The rights of any defendants pursuant to CPLR §317, CPLR §2003 and CPLR §5015, if any.

7. No Abstract of Title, stub search, or survey will be furnished. All Title and/or Abstract recreation or redating charges are the responsibility of the Purchaser. All of the expenses of recording the Referee's Deed, including, but not limited to, all of the Deed stamps, transfer taxes, and recording fees, if any, shall be paid for by the Purchaser.

8. The Title Insurance, if any, shall be paid for by the Purchaser. In the event that the Purchaser raises any written objections to the Title, the Plaintiff shall have the option of

providing Fee Title Insurance from a Title Insurance Company of its choice, ensuring insurable Title. The premium for such a Fee Title Insurance Policy shall be paid for by the Purchaser.

9. At or before the time of making a bid, the Bidder, if other than the Plaintiff, shall exhibit to the Referee cash or certified check(s) for at least ten percent (10%) of the amount of the bid and also identify themselves with name, address, and phone number.

10. Any sums advanced by Plaintiff or its agents after the sale and prior to the recording of the Deed for taxes, inspections, maintenance, preservation, etc., shall be reimbursed to Plaintiff at the time of the sale by the purchaser of the property.

11. Plaintiff or its assignees shall not be responsible for any damage occurring to the property after the foreclosure sale.

Dated: _____

Maureen A Byrne, Esq.,
Referee

MEMORANDUM OF SALE

_____ has this date agreed to purchase the Premises described in the annexed printed advertisement of the sale for the sum of \$_____, for which a deposit of \$_____ has been received, and hereby promises and agrees to comply with the terms and conditions of the sale of said Premises, as above-mentioned and set forth.

Dated: _____

Maureen A Byrne, Esq.,
Referee

Purchaser (print name)

Purchaser's signature

Purchaser's Telephone Number

Purchaser's Email Address

Purchaser's Address

Purchaser's Attorney

Print Name

Attorney's Telephone Number

Attorney's Email Address

RECEIPT

Received from _____, the sum of \$ _____,

being ten percent of the amount of the bid for the property sold by me under the Judgment in the
above-entitled action.

Dated: _____

Maureen A Byrne, Esq.,
Referee

PLAINTIFFS RECEIPT

The ten percent deposit is waived.

Maureen A Byrne, Esq.,
Referee

Print Name
LOGS Legal Group LLP
Attorneys for the Plaintiff

ATTORNEY'S CERTIFICATION

I, Barbara Dunleavy, am an attorney duly admitted to the practice of law in the State of New York. I am an Associate of LOGS Legal Group LLP, the attorneys for the Plaintiff, Wells Fargo Bank, N.A., in the above captioned civil action.

I HEREBY CERTIFY, pursuant to § 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR), to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, that the presentation of the papers in this action checked below, or the contentions therein, are not frivolous as defined in subsection (c) of § 130-1.1 of the Rules of the Chief Administrator (22 NYCRR):

☐ Summons & Complaint

☐ Answer or Reply

☐ Attorney Affirmation

☒ Other: Order Confirming Referee Report and Judgment of Foreclosure and Sale

Dated: June 30, 2023



Barbara Dunleavy, Esq.
Bankruptcy Attorney
LOGS LEGAL GROUP LLP F/K/A
SHAPIRO, DICARO & BARAK, LLC
175 Mile Crossing Boulevard
Rochester, New York 14624
(585) 247-9000
Fax: (585) 247-7380

At an ~~IAS~~ part a Term of the
SUPREME Court held in the County of
CORTLAND, at the County Courthouse
thereof, on the 7th day of July,
20 23.

PRESENT: Hon. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

KEYBANK, N.A. S/B/M FIRST NIAGARA BANK,

Plaintiff,

-vs-

DANIEL P. HARTNETT; THERESA DAFOE A/K/A
THERESA L. DAFOE A/K/A THERESA LYNN
DAFOE; GREEN LAKE ASSOCIATES, LLC;
MIDLAND FUNDING LLC A/P/O CITIBANK, N.A.,

Defendants.

INDEX NO.: EF22-164

ORDER CONFIRMING
REFeree REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:
1750 Little York Xing, Homer, NY
13077 a/k/a 1750 Little York
Crossing Road, Homer, NY 13077
COUNTY: CORTLAND
SBL#: 47.05-01-19.200

Mortgage Servicer:
KEYBANK, N.A.

Mortgage Servicer Phone #: 1-866-
325-9653

UPON the Summons, Complaint, and Notice of Pendency filed in this action on April
4, 2022, the Notice of Motion dated June 14, 2023, the affirmation by Jacqueline A. Carosa,
dated June 14, 2023
Esq., the affidavit of merit and amount due by Michael Bieber who is Banking Officer of
KEYBANK, N.A. S/B/M FIRST NIAGARA BANK, duly sworn to on March 9, 2023,
together with the exhibits annexed thereto, all in support of Plaintiff's motion for a
Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the
Summons and Complaint in this action, and has voluntarily appeared either personally or



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COURT & TRUST
13 Pages
Elizabeth Larkin, County Clerk

by an attorney or has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendants DANIEL P. HARTNETT, THERESA DAFOE a/k/a THERESA L. DAFOE a/k/a THERESA LYNN DAFOE, GREEN LAKE ASSOCIATES, LLC, and MIDLAND FUNDING LLC A/P/O CITIBANK, N.A. were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants DANIEL P. HARTNETT, THERESA DAFOE a/k/a THERESA L. DAFOE a/k/a THERESA LYNN DAFOE, GREEN LAKE ASSOCIATES, LLC, and MIDLAND FUNDING LLC A/P/O CITIBANK, N.A. are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of William J. Pomeroy, Esq. dated June 6, 2023, showing the sum of \$199,927.97 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Jacqueline A. Carosa, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further
ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same
is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the proper and accurate Legal
Description is hereby substituted *nunc pro tunc* for the erroneous Legal Description as Contained
in the Mortgage recorded in the Cortland County Clerk's office as Instrument No. 2008-03165, and all associated documents related to
such mortgage be, and the same hereby are, reformed by substituting therein the description
attached hereto as Schedule "A" and to the affirmation of Jacqueline Carosa in support of Plaintiff's instant motion as Exhibit "R", which is the
correct description, in place of the original mortgage premises description which is erroneous

MGM

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in
the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge
the mortgage debt, the expenses of the sale, and the costs of this action as provided by the
RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction ^{12/1} at
the Cortland County Supreme Court, 46 Greenbush Street, Suite 301, Cortland, NY 13045, by
and under the direction of William J. Pomeroy, Esq. who is hereby appointed Referee for that
purpose; that said Referee give public notice of the time and place of sale in accordance with
RPAPL §231 in The Cortland Standard; and it is further

MGM

~~ORDERED, ADJUDGED AND DECREED that any sale held in this matter during the
COVID-19 period shall be conducted in accordance with the Sixth Judicial District Foreclosure
Auction Plan; and it is further~~

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the
Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge
(22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from

* pursuant to the terms of sale attached as Exhibit A hereto
(the Terms of Sale)

appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiffs attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid; unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, ~~with the County Treasurer or in his/her IOLA account, as appropriate,~~ in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, or, if Plaintiff is the successful bidder, any assignee or successor in interest to Plaintiff, if applicable, in accordance with RPAPL §1353 and the Terms of Sale annexed hereto as ^{Exhibit A} ~~Schedule "B"~~, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-I of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion.

MGM

whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee ~~with the County Treasurer~~ or in his/her IOLA account, ~~as appropriate~~, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed ~~\$500.00~~ ^{\$750.1} unless the property sells for \$50,000.00 or more [- OR- in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay];

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

MGM

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies, of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$199,927.97 which includes interest at the note rate from May 15, 2019 until February 19, 2023, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements \$3,230.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0.00 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$5,650.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against DANIEL P. HARTNETT and THERESA DAFOE a/k/a THERESA L. DAFOE a/k/a THERESA LYNN DAFOE in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any

covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith. Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof. Said property is commonly known as 1750 Little York Xing, Homer, NY 13077 a/k/a 1750 Little York Crossing Road, Homer, NY 13077. ^[correct] The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.

ENTER:

MGM
DATED: July 13, 2023
Cortland, New York

MGM
Hon. MARK G. MASLER
Supreme Court Justice

Elizabeth Larkin



CJ-2023-01213
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JUDGMENT OF FORECLOSURE AN
13 Pages
Elizabeth Larkin, County Clerk

**SCHEDULE A
DESCRIPTION OF MORTGAGED PREMISES**

All that tract or parcel of land, situate lying and being located in the Town of Homer, County of Cortland, State of New York;

All that certain parcel or tract of land known as:

Part of Lot #6 in said town, bounded and described as follows:

Commencing at a point marked by an existing iron pipe in the southerly walk line of Little York Crossing Road, said point being located the following two courses from the intersection of the centerline of Little York Crossing Road and Mountain View Drive;

- (1) Northwesterly along the centerline of Little York Crossing Road a distance of 391.7 feet to a point;
- (2) Thence S 14° 03' W a distance of 26.0 feet to the point of beginning;

Thence running S 14° 03' W a distance of 286.00 feet to a point marked by a 5/8 inch rebar with survey cap;

Thence running N 68° 45' W a distance of 181.52 feet to a point marked by a 5/8 inch rebar with survey cap set 20.0 feet East of the Southeasterly line of lands conveyed to Ernest and Carole Rookey by deed recorded in the Cortland County Clerk's Office in Liber 340 of deeds at page 1083;

Thence running N 19° 58' E Parallel with and 20 feet easterly of the said line of Rookey, a total distance of 281.96 feet to a point marked by a 5/8 inch rebar with survey cap set in the southerly walk line of Little York Crossing Road;

Thence running S 69° 27' E along said walk line a distance of 152.00 feet to the point and place of beginning.

Containing 1.083 acres of land, more or less.

There is also conveyed all the right, title and interest of the grantor in and to the premises lying North of the 1.083 acre parcel to the centerline of the Little York Crossing Road.

Premises:	1750 Little York Xing, Homer, NY 13077
aka	1750 Little York Crossing Road, Homer, NY 13077
Tax Parcel ID No.:	Section: 47.05 Block: 01 Lot: 19.200

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]

At Part a Term of the Supreme Court held in
the County of Cortland, at the
Courthouse thereof, on the 7th day of
July, 20 23.

PRESENT: MARK G. MASCO
JUSTICE OF THE SUPREME COURT

WINDWARD BORA LLC,	INDEX NO: EF21-080
Plaintiff,	ORDER CONFIRMING REFEREE REPORT AND JUDGMENT OF FORECLOSURE AND SALE
-against-	VACANT PREMISES
DENNIS A. ALEBA; KATRINA L. CRANSTON;	Property Address: 4539 State Route 13 Cuyler, NY 13158
Defendant(s).	COUNTY: CORTLAND
	SBL: 31.00-03-30.000

Mortgage Services: Windward Bora, LLC
Tel: 646-431-8370

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the February 16, 2021, the Notice of Motion dated June 7, 2023, the affirmation of Sandy J. Stolar, Esq. and a Letter Decision and Order dated October 17, 2022 and the exhibits annexed thereto, the affidavit of merit and amount due by John Rainer who is Authorized Signatory of WINDWARD BORA LLC, duly sworn to on February 17, 2023, together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action and has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required



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Elizabeth Larkin, County Clerk

number of days has elapsed since defendants DENNIS A. ALEBA; KATRINA L. CRANSTON were so served and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants DENNIS A. ALEBA; KATRINA L. CRANSTON are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Patrick M. Snyder, Esq. dated May 19, 2023, showing the sum of \$26,516.23 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Sandy J. Stolar, Esq., attorney for the plaintiff, it is hereby **ORDERED, ADJUDGED AND DECREED** that the motion is granted; and it is further **ORDERED, ADJUDGED AND DECREED** that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the

MGM
Carthland County Courthouse, Pursuant to the Terms of sale attached
on the day of , 201 , at
as Exhibit A hereto (the Terms of Sale)

~~AM/PM~~ by and under the direction of Patrick M. Snyder, Esq., with
address at 70 Port Watson Street, Cortland, NY 13045 and telephone number:

607-753-8050, who is hereby appointed Referee for that purpose; that said Referee
give public notice of the time and place of sale in accordance with RPAPL §231 in
The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale
within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by
RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable;
and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the
Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22
NYCRR Part 36), including , but not limited to §36.2(c) ("Disqualifications from appointment")
and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is
disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee
shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from
accepting or retaining any funds for him/herself or paying funds to him/herself without compliance
with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the
foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at
the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors
and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgement, in accordance with CPLR §2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall the deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR §2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL§1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy; (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an escrow or DOLA ~~(name of depository)~~ ^(account in his own name) and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:
Amount due per Referee's Report: \$26,516.23 with interest at the note rate from July 1, 2013 until May 31, 2023 together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 3,786 adjudged to the Plaintiff for costs and disbursements in this action ~~(add if applicable, as taxed or calculated by the Clerk and interest herein)~~, with interest at the statutory judgement rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,225 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay cash in the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amount paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of the recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against DENNIS A. ALEBA and KATRINA L. CRANSTON in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgement with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgement stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 4539 State Route 13, Cuyler, NY 13158.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *MGML*
~~Schedule A.~~

Terms of Sale are attached.

ENTER:

DATED: *July 13, 2023*
Cortland, New York

MGML

Hon. MARK G. MASLER
Supreme Court Justice

Elizabeth Larkin



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JUDGMENT OF FORECLOSURE AN
12 Pages
Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]

At Part 1a Term of the Supreme Court held in
the County of Cortland, at the Cortland
Courthouse thereof, on the 21st day of

July, 2023.

PRESENT: Hon. Mark G Masler
JUSTICE OF THE SUPREME COURT

U.S. Bank National Association, as Trustee, for
Manufactured Housing Contract Senior/Subordinate Pass-
Through Certificate Trust 1999-3,
Plaintiff(s),

v.

Rebecca Potter a/k/a Rebecca A. Potter a/k/a Rebecca
Piombo; Springcastle Credit Funding Trust, through its
Trustee Wilmington Trust, National Association,

Defendant(s).

INDEX NO. EF22-230

**ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
4439 North Tower Road
East Freetown a/k/a Solon, NY
13040

SBL #: Section 80.00 Block 06
Lot 01.000

Mortgage Servicer:
Shellpoint Mortgage
Servicing

Mortgage Servicer Phone #:
(800) 365-7107

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 27th
day of May, 2022, the Notice of Motion dated June 15, 2023, the affirmation by Barbara
Dunleavy, Esq., dated June 15, 2023 with Exhibits G, Pa Q thereto,
the affidavit of merit and amount due by Christina Nash, who is Document
Verification Specialist of Plaintiff duly sworn to on August 3, 2022, together with the exhibits annexed
thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons
and Complaint in this action, and has not served any answer to the Complaint or otherwise
appeared, nor had their time to do so extended; and it appearing that more than the legally



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Elizabeth Larkin, County Clerk

20-088553

Judgment of Foreclosure and Sale

required number of days has elapsed since defendants, Rebecca Potter a/k/a Rebecca A. Potter
a/k/a Rebecca Piombo and Springcastle Credit Funding Trust, through its Trustee Wilmington

Trust, National Association, were so served and/or appeared; and Plaintiff having established to
the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants, Rebecca Potter a/k/a Rebecca A. Potter a/k/a
Rebecca Piombo and Springcastle Credit Funding Trust, through its Trustee Wilmington Trust,
National Association, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the
bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged
property can be sold in parcels; and

UPON reading and filing the Report of James J. Baranello Esq. dated March 16, 2023,
showing the sum of \$59,394.61 due as of August 1, 2022 ~~the date of said Report~~ and that the mortgaged property
may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and
upon all the prior proceedings and papers filed herein;

NOW, on motion by LOGS Legal Group LLP f/k/a Shapiro, DiCaro & Barak, LLC,
attorneys of record for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the
same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in
the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge

the mortgage debt, the expenses of the sale, and the costs of this action as provided by the
 RPAPL be sold within 90 days of the date of this Judgment, in one parcel, at a public auction at

the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of
 James J. Baranello, Esq., 39 Church Street, Cortland, NY 13045, 607-758-8200 who is hereby
 appointed Referee for that purpose; that said Referee give public notice of the time and place of
 sale in accordance with RPAPL §231 in *the Cortland Standard*; and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the
 Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22
 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment")
 and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is
 disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee
 shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from
 accepting or retaining any funds for him/herself or paying funds to him/herself without
 compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the
 foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at
 the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors
 and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the
 sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed
 by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably
 practicable; and it is further

* pursuant to the Terms of Sale annexed hereto as
 Exhibit A, and the Sixth Judicial District Foreclosure Auction
 Plan, a copy of which is also annexed hereto,

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in the Referee's I.O.L.A. account maintained for legal clients, in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such

party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents or water rates, which are, or may become, liens on the property at the time of sale with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in their I.O.L.A. account maintained for legal clients, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ \$250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes,

assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and

penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$59,394.61 with interest at the note rate from August 1, 2022 until the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: ^{11,645}~~\$1,620.00~~ adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment; MGM

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$5,225.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and funds shall be deposited with the Clerk of the Court; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due to Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the

time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Rebecca Piombo, unless discharged in bankruptcy, in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the

filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

(, upon proper application therefor,)
ORDERED, ADJUDGED AND DECREED, that the New York State Department of Motor Vehicles shall be required to issue a Certificate of Title for Serial Number PAFLW22AB 45104 SK13 belonging to a 1998 60 x 28 4603E Manufactured Home to the successful bidder at the foreclosure sale in the event that the same is required to convey marketable title in conjunction with said foreclosure sale; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 4439 North Tower Road, East Freetown a/k/a Solon, NY 13040.

The legal description of the mortgaged property referred to herein is annexed hereto as *MGM*
~~Schedule A.~~

ENTER

DATED: *July 25, 2023*
Cortland, New

MGM
Hon. Mark G Masler
Justice of the Supreme Court

Elizabeth Larkin



CJ-2023-01277
07/26/2023 03:39:09 PM
JUDGMENT OF FORECLOSURE ANI

Elizabeth Larkin, County Clerk

20-088553

Judgment of Foreclosure and Sale

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____ Referee Signature _____

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmiackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At ~~Part a Term~~ of the Supreme Court held in
the County of Cortland, at the Cortland
Courthouse thereof, on the 17th day of
July, 2023.

PRESENT: Hon. Mark G Masler
JUSTICE OF THE SUPREME COURT

KeyBank, NA, s/b/m First Niagara Bank, NA,
Plaintiff(s),

v.

Steven M. Timmons; Lynn M. Timmons; Wells Fargo
Bank, N.A.; Tompkins Trust Company; New York State
Department of Taxation and Finance; Shellie Hart; Amanda
Race; Tonya Kinthiseng,

Defendant(s).

INDEX NO. EF22-460

**ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
12 Venette Street
Cortland, NY 13045

SBL #: Section 86.51 Block 03
Lot 11.000

Mortgage Servicer:
KeyBank, N.A.

Mortgage Servicer Phone #:
1-866-325-9653

NGM
UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 26th
day of October, 2022, the Notice of Motion dated June 20, 2023, the affirmation by Barbara
Dunleavy, Esq., dated June 20, 2023, with Exhibits G, P & Q thereto, the affidavit of merit and amount due by Michael Bieber, who is Banking
Officer, duly sworn to on February 9, 2023, together with the exhibits annexed thereto, all in
support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons
and Complaint in this action, and has not served any answer to the Complaint or otherwise
appeared, nor had their time to do so extended; and it appearing that more than the legally
required number of days has elapsed since defendants, Steven M. Timmons and Lynn M.



2023-04105
07/26/2023 03:41:59 PM
COURT & TRUST
Elizabeth Larkin, County Clerk

22-090212

Judgment of Foreclosure and Sale

Timmons and Wells Fargo Bank, N.A. and Tompkins Trust Company and New York State
Department of Taxation and Finance and Shellie Hart and Amanda Race and Tonya Kinthiseng,

were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants, Steven M. Timmons and Lynn M. Timmons and Wells Fargo Bank, N.A. and Tompkins Trust Company and New York State Department of Taxation and Finance and Shellie Hart and Amanda Race and Tonya Kinthiseng, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of William J. Pomeroy Esq dated May 19, 2023, ^{MGM} showing the sum of \$94,225.00 due as of January 23, 2023 ~~the date of said Report~~ and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by LOGS Legal Group LLP f/k/a Shapiro, DiCaro & Barak, LLC, attorneys of record for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold within 90 days of the date of this Judgment, in one parcel, at a public auction^{del} at the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of William J. Pomeroy, Esq, 16 Tompkins St, PO BOX 828, Cortland, NY 13045, 607-756-7501 who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in *the Cortland Standard*; and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed

** pursuant to the Terms of sale attached as Exhibit A hereto (the Terms of Sale), and the Sixth Judicial District Foreclosure Auction Plan, a copy of which is also attached hereto*

by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in the Referee's I.O.L.A. account maintained for legal clients, in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the
Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days
after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined
in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such
party shall place the property back on the market for sale or other occupancy: (a) within 180 days
of the execution of the deed of sale, or (b) within 90 days of completion of construction,
renovation, or rehabilitation of the property, provided that such construction, renovation, or
rehabilitation proceeded diligently to completion, whichever comes first, provided however, that
a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the
proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according
to law, all taxes, assessments, sewer rents or water rates, which are, or may become, liens on the
property at the time of sale with such interest or penalties which may have lawfully accrued
thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee then deposit the balance
of said proceeds of sale in his/her own name as Referee in their I.O.L.A. account maintained for
legal clients, and shall thereafter make the following payments in accordance with RPAPL
§1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with
CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or
in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in

the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$94,225.00 with interest at the note rate ^{1st 3.99%} from January 23, 2023 until the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: ¹⁷⁵¹\$3,086.46 adjudged to the Plaintiff for costs and ^{MGM} disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ ⁰ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$5,225.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and funds shall be deposited with the Clerk of the Court; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due to Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the
Referee's deed, including real property transfer tax, which is not a lien upon the property at the
time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any
transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in
accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to
pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above,
Plaintiff may seek to recover a deficiency judgment against Steven M. Timmons and Lynn M.
Timmons, unless discharged in bankruptcy, in accordance with RPAPL § 1371 if permitted by
law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold
in one parcel in "as is" physical order and condition, subject to any condition that an inspection
of the property would disclose; any facts that an accurate survey of the property would show; any
covenants, restrictions, declarations, reservations, easements, right of way, and public utility
agreements of record, if any; any building and zoning ordinances of the municipality in which
the mortgaged property is located and possible violations of same; any rights of tenants or
persons in possession of the subject property; prior liens of record, if any, except those liens
addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem
the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003,
and 5015, or any appeal of the underlying action or additional litigation brought by any
defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and

maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that the Cortland County Clerk note in the original recorded mortgage that the legal description is hereby reformed, as set forth in the *Order of Reference.* MGM

Said property is commonly known as 12 Venette Street, Cortland, NY 13045.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~
~~Schedule A.~~

ENTER

DATED: *July 25, 2023*
Cortland, New York

MGM

Hon. Mark G Masler
Justice of the Supreme Court

Elizabeth Larkin



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JUDGMENT OF FORECLOSURE AND

Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At an Ex Parte Term of the Supreme Court, held in and for the
County of Cortland, at the Court House thereof on the
13th day of July, 2023

PRESENT: HON. MARK G. MASLER, J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

In the Matter of the Foreclosure of Tax Liens by
Proceeding In Rem pursuant to Article Eleven of
the Real Property Tax Law by the County of
Cortland

**JUDGMENT
OF FORECLOSURE**

**Index No.: 21-564
RJI No.: 2022-0337-X**

Upon the Petition and Notice of Foreclosure ("Petition") duly filed in this action in the Office of the Clerk of the County of Cortland on the 15th day of February, 2023, and on all proceedings thereon, and upon due proof that notice of such Petition was duly published, after the filing of such Petition, in each of three non-consecutive weeks in a two month period in the Cortland Standard and The Cortland Area Tribune, newspapers duly designated for that purpose by the County of Cortland, and upon the filing of the Affirmation of Regularity for Judgment of Foreclosure of Richard J. Evans, Jr., Esq., special counsel with Phillips Lytle LLP, Tax Foreclosure Counsel for the County of Cortland, dated June 15, 2023, demonstrating the due posting and publication of such Petition and of the due service on the owners of the property affected thereby, and other parties in interest, and that no answer has been filed or served except as indicated therein; and upon proof that there has been due compliance by the County of

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Elizabeth Larkin, County Clerk

Cortland with the provisions of Article 11 of the New York Real Property Tax Law; and upon proof that no persons or parties are entitled to notice of this application; and Richard J. Evans, Jr., Esq., special counsel with Phillips Lytle, Tax Foreclosure Counsel, appearing for the County of Cortland.

NOW, on application of Phillips Lytle LLP, Tax Foreclosure Counsel to the County of Cortland, it is

ORDERED, ADJUDGED AND DECREED that the Enforcing Officer of the County of Cortland shall prepare, execute and cause to be recorded a deed conveying to the County of Cortland, or to the designee of the County of Cortland, full and complete title to the parcels set forth and described on Exhibit A attached hereto and upon execution of such deed the County of Cortland, or such designee, shall be seized of an estate in fee simple absolute in such parcels and all persons, including the state, infants, incompetents, absentees and non-residents who have, or may have had, any right, title, interest, claim, lien or equity of redemption in or upon said parcels shall be barred and forever foreclosed of all such right, title, interest, claim, lien or equity of redemption; and it is further

ORDERED, ADJUDGED AND DECREED that any of the parcels set forth and appearing on Exhibit A attached hereto may, at the discretion of the Enforcing Officer of the County of Cortland, be excluded from such deed to the County of Cortland upon any of the grounds set forth in New York Real Property Tax Law §1138 ~~or for other good cause.~~ **MGM**

Dated: July 13, 2023
Cortland, New York

ENTER:

MGM

HON. MARK G. MASLER, J.S.C.

Elizabeth Larkin

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JUDGMENT OF FORECLOSURE ANI

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Elizabeth Larkin, County Clerk

A

Serial #	Parcel ID	Jur	Street	Owner names
20001	111.00-03-05.000	Cincinnati	Route 41	Panagos Alex
21010	122.08-02-05.000	Cincinnati	5620 Piety Hill Rd	Hotaling Zachery C
21013	123.00-04-32.000	Cincinnati	6082 Brackel Rd	BCL & J LLC
19004	96.09-04-17.000	Cortlandville	3600 Kingsley Ave	The Estate of Yvonne Nadeau
19005	98.00-01-59.100	Cortlandville	3350 Route 11	The Estate of Jean E Fish
21044	88.19-01-73.000	Cortlandville	Elm St	Tong Dallas Dale
21077	108.00-01-37.000	Cortlandville	3044 Route 11	The Estate of Charlotte Kinney
20089	94.00-01-01.000	Cortlandville	179 Old Groton Rd	Emeno Everett L; Emeno Marjorie F
20093	95.11-03-02.000	Cortlandville	700 McLean Rd	Strauf Stephen C
21072	106.05-01-24.000	Cortlandville	3266 Walden Oaks Blvd	Susman Melinda
21079	74.00-02-05.000	Cortlandville	Hatfield Hill Rd	Cobb John
21106	86.13-01-52.000	Cortlandville	1088 Route 222	243 Groton Avenue Associates
21123	95.16-01-71.000	Cortlandville	805 Lamont Cir	The Estate of Grace Hedlund
21143	96.06-01-37.000	Cortlandville	3701-3703 Levydale Park	Sturdevant Dean
21192	11.00-05-09.000	Cuyler	7540 E Keeney Rd	Fuller Dylan J
21214	42.00-03-05.000	Cuyler	6298 Cuyler Hill Rd	Wheeler Kent G Jr
21219	52.00-02-06.000	Cuyler	Cuyler Hill Rd	Sanford Donald Jr
20165	11.00-01-05.000	Cuyler	7833 W Keeney Rd	The Estate of Alice K Murdent
21209	31.00-03-02.000	Cuyler	6585 W Keeney Rd	Stone Kenneth R; Hersey Susan R
19006	121.00-04-07.000	Freetown	2503 Maricle Rd	Osborn Melissa E; Harris Arthur L
21227	119.00-01-20.200	Freetown	3387&3393 Freetown Hoxie Gorge Rd	Rose John D; The Estate of Kathy F Rose
20218	131.00-03-03.000	Freetown	2199 Maricle Rd	The Estate of Dale Brenner
21260	162.11-01-19.200	Harford	770 Route 221	Willis Nichole
20230	144.00-03-03.000	Harford	1110 Daisy Hollow Rd	Donovan Cathleen McDermott
21261	162.15-01-07.100	Harford	354 Route 38	VanKuren Stephen III; Workman Jessica; Workman Bobbi
20260	66.74-02-01.000	Homer	24 Elm Ave	Mooney Ann Marie
20281	58.10-01-03.000	Homer	5433 Mead Rd	Leach William J
20293	66.02-01-12.110	Homer	5017 Route 11	Rowley Larry Jr; Rowley Stephanie
21315	58.00-06-01.000	Homer	2557 Route 13	Rowley Larry J Jr
21324	66.00-08-01.000	Homer	5153 Route 41	Trinity Financial Services LLC
21348	165.00-06-07.000	Lapeer	2367 Strawberry Lake Dr North	Downing Tricia E
21352	166.00-04-10.000	Lapeer	108 Hopkins Rd	The Estate of Kerry White
19011	166.00-02-10.000	Marathon	3481 Krill Rd	Baxter Marilyn
21364	158.17-01-11.000	Marathon	10 Main St	Furgeson Carol
21367	148.00-01-01.000	Marathon	1323 Route 11	The Estate of Mark D Barron; Jamelske Caryl
21368	149.00-03-01.200	Marathon	1172 McGraw Marathon Rd	Cross Derek; Cross Sarah
21391	168.00-01-24.000	Marathon	147 Merrill Creek Rd	Smith Steven; Fredericks Christopher J
20321	157.20-03-02.100	Marathon	W Main St	Heath Dale E; Heath Janie R
21361	158.13-01-04.000	Marathon	5 Swift St	McKane Megan
20355	7.04-01-67.111	Preble	Saulsbury Rd	The Estate of William Underwood; Underwood Jeanne
20365	28.00-01-22.120	Preble	2392 E Hill Rd	Stevens Connie

Serial #	Parcel ID	Jur	Street	Owner names
21402	7.00-05-26.000	Preble	Fulmer Rd	The Estate of Genevieve Griswald aka Genevieve Twist
21406	7.14-02-09.000	Preble	7533 Old Woods Rd	Barry David C III; The Estate of Diane E Barry
21430	36.00-08-10.000	Scott	Long Rd	Niederhofer Thomas
21433	5.00-02-26.000	Scott	7550 Brake Hill Rd	Gibbs Erik; Gibbs Jarod; Schill Robert
21444	69.00-05-09.000	Solon	Syrian Hill Rd	Roederer Charlotte D
21459	90.00-01-04.000	Solon	4216 N Tower Rd	Greene Kimberly F
21477	113.05-01-15.000	Taylor	3255 Cheningo Solon Pond Rd	Rathbun Timothy; The Estate of Barbara Genow
21485	82.00-01-32.200	Taylor	Elwood Rd	Elwood James S; Elwood Susan
21489	83.00-01-04.000	Taylor	4616 Union Valley Rd	The Estate of Ruth Angell
21525	61.00-01-22.200	Truxton	5206 Angel Rd	Bishop Tyler
21523	61.00-01-16.000	Truxton	5607 Cheningo Solon Pond Rd	The Estate of George Kiaffas
20640	127.11-01-16.120	Virgil	2024 Amalia Dr	P & L Property Development LLC
21546	126.00-05-22.000	Virgil	1007 Church St	The Estate of Virginia Daniels; The Estate of Francis Daniels
20642	127.11-01-17.000	Virgil	2022 Amalia Dr	P & L Development, LLC
21600	151.12-01-32.000	Willet	1268 Mill St	McArdle John

At a Term of Supreme Court of the State of New York held in and for the County of Cortland, at the Cortland County Courthouse in Cortland, New York, on the 21st day of July, 2023.

PRESENT: Hon. Mark G. Masler
Justice Supreme Court

STATE OF NEW YORK
SUPREME COURT COUNTY OF CORTLAND

Index No. EF22-200

Community Bank, N.A. s/b/m to Elmira Savings Bank,

**JUDGMENT OF
FORECLOSURE
AND SALE**

Plaintiff,

v.

Mortgaged Premises:
58 Madison Street
Cortland, NY 13045
Tax Parcel: 86.41-01-12.000
City of Cortland
County of Cortland

Kari Burlingame
Secretary of Housing and Urban Development,

Mortgage Servicer: Community Bank,
N.A. s/b/m Elmira Savings Bank

Defendants.

Servicer Telephone: 716-376-7128

Upon the Notice of Motion of Plaintiff dated June 21, 2023, the Affirmation in Support of Motion for Judgment of Foreclosure and Sale of Esther S. Gabriel, Esq. dated June 21, 2023, the Summons, Complaint duly filed in this action on May 2, 2022 and Notice of Pendency of action duly filed in this action on May 2, 2022 and on all proceedings thereon; and upon the Affirmation of No Answer and that the Notices of Pendency of action has been filed of Esther S. Gabriel, Esq., dated February 24, 2023, showing (a) that each and all of the defendants herein having been personally served with the Summons in this action, or have voluntarily appeared herein by their respective attorneys, (b) that more than twenty (20) days or thirty (30) days had elapsed since said defendants were so served and/or appeared as aforesaid, (c) that none of said defendants had served any answer to said Complaint, nor has their time to do so been extended, (d) that the Complaint

HARRIS BEACH &
ATTORNEYS AT LAW



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11 Pages
Elizabeth Larkin, County Clerk

herein and due Notices of Pendency of this action, containing all the particulars required to be stated therein, were duly filed in the Office of the Clerk of the County of Cortland, and (e) that this matter

was referred to Dante Armideo, Esq., by Order of the Honorable Justice Mark G. Masler, J.S.C., dated May 4, 2023, to compute the amount due to the Plaintiff upon the Debt Instrument and Mortgage described in the Complaint and to examine and report whether the Mortgaged Premises can be sold in parcels; and upon reading the report of Dante Armideo, Esq., Referee, dated May 15, 2023, by which report it appears that the sum of Fifty Nine Thousand and Ninety Seven and 28/100 Dollars (\$59,097.28) was due as of January 31, 2022, and that the Mortgaged Premises should be sold in one parcel;

NOW, UPON MOTION OF Harris Beach PLLC, attorneys for the Plaintiff, it is

ORDERED, ADJUDGED AND DECREED, that the report of Referee be, and the same is hereby in all respects, ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that at the foreclosure sale the Referee may announce and accept a written bid from the Plaintiff or the Plaintiff's attorneys, as though the Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED, that the Mortgaged Premises described in the Complaint, ~~and hereinafter described in Exhibit "A"~~, or such part hereof as may be sufficient to discharge (a) the mortgage debt, (b) the expense of the sale and (c) the costs of this action as provided by the Real Property Actions and Proceedings Law, be sold at public auction in accordance with the Terms of Sale attached hereto as Exhibit "A" and with the Sixth Judicial District Foreclosure Auction Plan attached hereto as Exhibit "B" at the Cortland County Courthouse, 46 Greenbush Street, Cortland, NY 13045, by and under the direction of Dante Armideo, Esq., who is hereby appointed Referee for that purpose; that the said Referee give public notice of the time and place of sale according to law and the practice of this Court in The

Cortland Standard, and that the Plaintiff or any other parties to this proceeding may become the purchaser or purchasers at such sale. In case the Plaintiff shall become the purchaser at said sale, it shall not be required to make any deposit thereon. The Referee shall execute to the purchaser or purchasers on such sale a deed to the Mortgaged Premises sold. Upon receiving the proceeds of the sale, the Referee shall deposit said proceeds of sale in his attorney's trust account in his own name as Referee and shall thereafter make the following payments and the checks drawn for that purpose shall be paid by the said depository:

FIRST: To the Referee, the statutory fees of said Referee, in the amount of \$750.00. In the event a scheduled sale is cancelled or postponed, pursuant to CPLR §8003(b), Plaintiff shall compensate the Referee in the sum of \$250.00 for each adjournment or cancellation unless the Referee has requested the delay;

SECOND: The expenses of the sale, including advertising and preservation expenses as shown on the bills presented, and certified by the said Referee to be correct, duplicate copies of which shall be left with said depository;

THIRD: To the municipal entity involved: (a) all taxes, assessments and water rates, which are liens on the premises at the time of the sale; and (b) if the sale is in regards to the Mortgaged Premises located in a city having a population of 300,000 or more, or in a city having a population between 150,000 and 175,000, all liens or encumbrances placed on the Mortgaged Premises by any city agency where said liens or encumbrances have priority over the foreclosed mortgage. In addition, from the proceeds, the Referee shall redeem the Mortgaged Premises sold from any sales for unpaid taxes, assessments and water rates which have not apparently become absolute.

FOURTH: To the Plaintiff or Plaintiff's attorney, an amount equal to the sum of \$ 2,416.40 for costs and disbursements in this action, as taxed by the County Clerk, with interest thereon from the date hereof, and also the sum of \$ 5,650 for attorney's fees; and the sum of \$59,097.28, which amount is the amount reported due, with interest thereon pursuant to the notes from the date interest was calculated through in the Referee's report to the date of this Judgment of Foreclosure and Sale, and thereafter, at the legal interest rate of nine percent (9%) per annum until the day of sale, or, if there are insufficient proceeds to pay said sum, then an amount equal to the balance held by the Referee.

FIFTH: In case the Plaintiff is the purchaser of said Mortgaged Premises at said sale, or in the event that the rights of the purchaser at said sale and the terms of sale under this Judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but upon the payment to said Referee of the amounts specified in paragraphs "FIRST", "SECOND" and "THIRD" above shall execute and deliver to the Plaintiff a deed or deeds to the Mortgaged Premises sold.

SIXTH: The balance of the amount bid, after deducting therefrom the aforesaid amounts paid by the Plaintiff for Referee's fees and advertising expenses, shall be allowed to the Plaintiff and applied by said Referee upon the amounts due to the Plaintiff as specified above in paragraph "FOURTH". If, after applying the balance of the amount bid, there shall be a surplus over and above the said amounts due to the Plaintiff, the Plaintiff shall pay to the Referee, upon delivery to Plaintiff of said Referee's deed, the amount of such surplus. Upon receiving said amounts from the Plaintiff, the Referee shall forthwith then deposit the balance.

SEVENTH: The Referee is to take the receipt of the Plaintiff or Plaintiff's attorney for the

amounts paid as hereinbefore directed in paragraph "FOURTH" and file it with his Report of Sale and shall deposit the surplus monies, if any, with the Cortland County Treasurer within five (5) days

after the same shall be received and be ascertainable, to the credit of this action, to be withdrawn only on the order of the Court, signed by a Justice of the Court. The Referee is to make such report of sale under oath showing the disposition of the proceeds of the sale, and said report is to be accompanied by the vouchers of the person to whom payments were made, and shall file it with the Clerk of the County of Cortland within thirty (30) days after completing the sale and executing the proper conveyance to the purchaser. If the proceeds of such sale are insufficient to pay the amount reported due to the Plaintiff with interest and costs, as aforesaid, the Plaintiff shall recover from the defendants, Kari Burlingame, unless discharged in bankruptcy, the whole deficiency, or so much thereof as the Court may determine to be just and equitable, of the mortgaged debt remaining unsatisfied after the sale of the Mortgaged Premises and the application of the proceeds thereof, provided a motion for deficiency judgment is made as prescribed by Section 1371 of the Real Property Actions and Proceedings Law within the time set forth therein and the amount thereof is determined and awarded by an order of this Court as provided for in said section; and it is further

ORDERED, that by accepting this appointment the referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including but not limited to Section 36.2(c) ("Disqualifications from appointment"), and Section 36.2(d) ("Limitations on appointments based upon compensation"); and it is further

ndm ORDERED, that the purchaser or purchasers at said sale be let into immediate possession or upon personal service of the Referee's Deed in accordance with CPLR 3081 of the Mortgaged Premises upon production of the Referee's Deed or Deeds, and it is further

~~ORDERED, ADJUDGED AND DECREED, that the purchaser be required to pay interest on the bid amount at the rate of nine percent (9%) per year from the date of the sale until the delivery of the Referee's Deed; and it is further~~ HGM

ORDERED, ADJUDGED AND DECREED, that each and all of the defendants in this action and all persons claiming under them, or any or either of them, after the filing of such Notice of Pendency of this action, be and they are forever barred and foreclosed of all right, claim, lien, title, interest and equity of redemption in the Mortgaged Premises and each and every part thereof, except that the United States of America, if named as a defendant herein, shall have 120 days from the date of the sale within which to redeem the property if it so chooses; and it is further

ORDERED, ADJUDGED AND DECREED, that the subordinate liens of the Plaintiff, other than the mortgage or mortgages that are the subject matter of this action, are foreclosed herein as though the Plaintiff was named as a party defendant, specifically reserving to the Plaintiff its right to share in any surplus monies as a result of such position as a lien creditor; and it is further

ORDERED, ADJUDGED AND DECREED, that pursuant to Section 1351 and 1354 of the RPAPL, that upon complying with the provision of subdivisions 1 and 2 of Section 1354, that the Referee shall pay to the holder of any subordinate mortgage or their attorney from the then remaining proceeds the amount then due on such subordinate mortgage, or so much as the then remaining proceeds will pay and take the receipt of the holder or his attorney for the amount so paid and file the same with his report of sale; and it is further

~~ORDERED, ADJUDGED AND DECREED, that the Referee is not required to send any notice to close to the purchaser; and it is further~~ HGM

ORDERED, ADJUDGED AND DECREED, that Plaintiff's Counsel shall provide the Referee with the "Foreclosure Action Surplus Monies Form" promulgated by the Office of Court

Administration and the Referee shall complete and file the form with the Cortland County Clerk and provide the Court with an entered copy within thirty (30) days of the foreclosure sale date; and it is further

ORDERED, ADJUDGED AND DECREED, that the Mortgaged Premises are being sold subject to:

- (a) All covenants, restrictions and easements of record and zoning regulations and ordinances of the City, Town and Village in which said Mortgaged Premises lie;
- (b) The rights of the public and others in and to any part of the Mortgaged Premises that lies within the bounds of any street, alley or highway;
- (c) Any state of facts that an accurate survey, currently dated, might disclose;
- (d) Any state of facts an inspection would disclose, it being understood that the Mortgaged Premises is sold in an "as is" and "where is" condition;
- (e) Any and all tenancies, possessory interests and/or leases affecting the Mortgaged Premises which have not been extinguished by this foreclosure action; and
- (f) The right of redemption of the United States of America, if any.

~~The description of the said Mortgaged Premises hereinbefore mentioned is set forth on~~ *MGM*

~~Exhibit "A" annexed hereto.~~

Dated: July 25, 2023
Cortland, New York

MGM

Hon. Mark G. Masler, J.S.C.

Elizabeth Larkin



CJ-2023-01280
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JUDGMENT OF FORECLOSURE ANI
11 Pages
Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the
following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

1st Term
At Part 1 of the Supreme Court of the
State of New York, held in and for the
County of CORTLAND at the Courthouse
thereof, 46 Greenbush Street, Suite 301,
Cortland, NY 13045, on the 20th day of
July, 2023.

P R E S E N T: Honorable Mark G Masler
JUSTICE OF THE SUPREME COURT
COUNTY OF CORTLAND

-----X
**NATIONSTAR MORTGAGE LLC D/B/A MR.
COOPER,**

INDEX NO.: EF22-060

Plaintiff(s),

**JUDGMENT OF FORECLOSURE
AND SALE**

v.
**KEEGAN J. COUGHLIN, AS
ADMINISTRATOR OF THE ESTATE OF
JEFFREY A. STOUT AKA JEFFREY STOUT;
J.S., A MINOR CHILD, BY AND THROUGH
HER NATURAL GUARDIAN, CHRISTINA
BROWN, AS HEIR AND DISTRIBUTE OF
THE ESTATE OF JEFFREY A. STOUT AKA
JEFFREY STOUT; K.S., A MINOR CHILD, BY
AND THROUGH HER NATURAL
GUARDIAN, RACHEL PARKER, AS HEIR
AND DISTRIBUTE OF THE ESTATE OF
JEFFREY A. STOUT AKA JEFFREY STOUT;
HEIRS AND DISTRIBUTEES OF THE
ESTATE OF JEFFREY A. STOUT AKA
JEFFREY STOUT; UNITED STATES OF
AMERICA,**

**MORTGAGED PROPERTY: 6 & 6
1/2 NORTH FULTON STREET
HOMER, NY 13077
COUNTY: CORTLAND**

**SBL#: Section 66.73, Block 02, Lot
19.000
Servicer: Nationstar Mortgage LLC
Servicer Telephone: (888) 480-2432**

**"JOHN DOE #1" through "JOHN DOE #12," the
last twelve names being fictitious and unknown to
plaintiff, the persons or parties intended being the
tenants, occupants, persons or corporations, if
any, having or claiming an interest in or lien upon
the premises, described in the complaint,**

-----X
**UPON reading the Summons, Complaint and Notice of Pendency filed in this action on
February 14, 2022, the Notice of Motion dated June 27, 2023, the affirmation of Jeremy Kaufman,**


20-018875 - KiS





2023-04106
07/26/2023 03:45:49 PM
COURT & TRUST
Elizabeth Larkin, County Clerk

MGM dated June 27, 2023
 Esq. and the exhibits annexed thereto, and upon the Stipulation Consenting to Judgment of
 Foreclosure and Sale filed on January 17, 2023, and all prior papers filed in this action; and

UPON proof this action was brought to foreclose a mortgage on real property located at 6
 & 6 1/2 NORTH FULTON STREET, HOMER, NY 13077, in the County of CORTLAND, State
 of New York Section 66.73, Block 02, Lot 19.000.

MGM UPON proof that each of the Defendants herein have been duly served with the Summons
 and Complaint in this action, and have not served any answer to the Complaint or otherwise
 appeared, nor had their time to so do extended; and it appearing that more than the legally required
 number of days had elapsed since said Defendants CHRISTINA BROWN ^[J.S.] AS HEIR AND
 DISTRIBUTE OF THE ESTATE OF JEFFREY A. STOUT AKA JEFFREY STOUT and
RACHEL PARKER ^[K.S.] AS HEIR AND DISTRIBUTE OF THE ESTATE OF JEFFREY A.
 STOUT AKA JEFFREY STOUT were so served and/or appeared; and Plaintiff having established
 to the court's satisfaction that judgment against the defendants is warranted; and

UPON proof that non-appearing defendants CHRISTINA BROWN ^[J.S.] AS HEIR AND
 DISTRIBUTE OF THE ESTATE OF JEFFREY A. STOUT AKA JEFFREY STOUT and
RACHEL PARKER ^[K.S.] AS HEIR AND DISTRIBUTE OF THE ESTATE OF JEFFREY A.
 STOUT AKA JEFFREY STOUT are not absent, in accordance with RPAPL §1321(2);

AND it appearing that the defendant(s)/mortgagor(s) is/are not resident(s) of the property
 subject to foreclosure;

AND Plaintiff having waived its right to a deficiency judgment and accepted the sale of
 the property in full satisfaction of the mortgage debt; and

UPON proof of notice of this motion to all parties and persons entitled thereto;

NOW, on motion by the attorneys for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the default of all non-appearing

defendants is hereby fixed and determined; and it is further

ORDERED, ADJUDGED AND DECREED that, in accordance with the Stipulation Consenting to Judgment of Foreclosure and Sale filed on January 17, 2023, wherein the parties agreed that the sum of \$111,161.00 was due as of June 9, 2022; and it is further

MGM [ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint in this action ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at public auction at the Cortland County Courthouse * by and under the direction of James J. Baranello, Esq., 39 Church St, Cortland, NY 13045, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment"), and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

MGM ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part

* pursuant to the Terms of Sale attached as Exhibit A hereto (the Terms of Sale) and the Sixth Judicial District Foreclosure Auction Plan, a copy of which is also attached hereto,

36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the sale within

90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in his/her IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after the date of

such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff (or its affiliate, as defined

in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in his/her IOLA account, and shall make thereafter the following payments in accordance with RPAPL §1354, as follows:

FIRST: The statutory fees of the Referee for conducting the sale, in accordance with CPLR 8003(b), not to exceed ~~\$500.00~~ ¹⁸⁷⁵⁰ unless the property sells for \$50,000.00 or more -OR- in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay; MGM

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid

taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be

responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be held responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

the sum of \$111,161.00, the amount agreed to in the Stipulation Consenting to Judgment of Foreclosure and Sale, together with interest thereon pursuant to the terms of the Note from June 9, 2022, the date to which interest was calculated and through the date of entry of this Judgment of Foreclosure and Sale, and thereafter at the statutory post-judgment rate to the date of transfer of title, or so much thereof as the purchase money of the mortgaged premises will pay of the same;

Costs and Disbursements: \$ 400 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to the Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 1,800 is hereby awarded to the Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt, in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts in paragraph "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further.

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds; that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any state of facts that an inspection of the property would disclose; any state of facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens or record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United State of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003 and 5015 or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further.

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of or upon personal service of the Referee's Deed in accordance with CPLR 308 the property on production of the Referee's Deed, and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action, all persons claiming through them, and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within thirty days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the Court, the officer making the sale shall file with the County Clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further.

ORDERED ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the court unless the Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED, that defendants captioned as "John Doe #1" through "John Doe #12", not having been served with copies of the Summons and Complaint, are neither a necessary nor property party defendants and their names are hereby stricken from the caption of this action; and it is further

ORDERED, ADJUDGED and DECREED that the caption shall read as follows:

-----X
NATIONSTAR MORTGAGE LLC D/B/A MR. INDEX NO.: EF22-060
COOPER,

Plaintiff(s),

v.

KEEGAN J. COUGHLIN, AS ADMINISTRATOR OF THE ESTATE OF JEFFREY A. STOUT AKA JEFFREY STOUT; J.S., A MINOR CHILD, BY AND THROUGH HER NATURAL GUARDIAN, CHRISTINA BROWN, AS HEIR AND DISTRIBUTE OF THE ESTATE OF JEFFREY A. STOUT AKA JEFFREY STOUT; K.S., A MINOR CHILD, BY AND THROUGH HER NATURAL GUARDIAN, RACHEL PARKER, AS HEIR AND DISTRIBUTE OF THE ESTATE OF JEFFREY A. STOUT AKA JEFFREY STOUT; HEIRS AND DISTRIBUTEES OF THE ESTATE OF JEFFREY A. STOUT AKA JEFFREY STOUT; UNITED STATES OF AMERICA,

Defendant(s).

And it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Order and Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein;

Said property is commonly known as 6 & 6 1/2 NORTH FULTON STREET, HOMER, NY 13077.

MGM ~~The legal description of the mortgaged property referred to herein is annexed hereto as~~
~~Schedule A.~~

DATED: July 26, 2023
Cortland, New York

ENTER:

MGM

Hon. Mark G Masler, J.S.C.

Elizabeth Larkin



CJ-2023-01279

07/26/2023 03:45:49 PM

JUDGMENT OF FORECLOSURE AND

Elizabeth Larkin, County Clerk

Index No.: EF22-060

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF CORTLAND

NATIONSTAR MORTGAGE LLC D/B/A MR. COOPER,

PLAINTIFF,

- AGAINST -

KEEGAN J. COUGHLIN, AS ADMINISTRATOR OF THE ESTATE OF JEFFREY A. STOUT AKA JEFFREY STOUT; J.S., A MINOR CHILD, BY AND THROUGH HER NATURAL GUARDIAN, CHRISTINA BROWN, AS HEIR AND DISTRIBUTE OF THE ESTATE OF JEFFREY A. STOUT AKA JEFFREY STOUT; K.S., A MINOR CHILD, BY AND THROUGH HER NATURAL GUARDIAN, RACHEL PARKER, AS HEIR AND DISTRIBUTE OF THE ESTATE OF JEFFREY A. STOUT AKA JEFFREY STOUT; HEIRS AND DISTRIBUTEES OF THE ESTATE OF JEFFREY A. STOUT AKA JEFFREY STOUT; UNITED STATES OF AMERICA,

"JOHN DOE #1" through "JOHN DOE #12," the last twelve names being fictitious and unknown to plaintiff, the persons or parties intended being the tenants, occupants, persons or corporations, if any, having or claiming an interest in or lien upon the premises, described in the complaint,

DEFENDANTS.

JUDGMENT OF FORECLOSURE AND SALE

Robertson, Anschutz, Schneid, Crane & Partners, PLLC

Attorneys for Plaintiff

900 Merchants Concourse, Suite 310

Westbury, NY 11590

Telephone: 516-280-7675

=====

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the
following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov kslitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At an Ex Parte Term of the Supreme Court held in and for the County of Cortland, at the Cortland County Courthouse, Cortland, NY, on the 23rd day of August 2023.

PRESENT: HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

SUPREME COURT
STATE OF NEW YORK COUNTY OF CORTLAND

Reliant Community Federal Credit Union,

Plaintiff,

vs.

Michael C. Shute;

Defendants.

) Index No. EF22-520

)

) **ORDER CONFIRMING**
) **REFEREE'S REPORT**
) **AND JUDGMENT OF**
) **FORECLOSURE AND SALE**

)

) MORTGAGED PROPERTY:

) 3907 Hobart Hill Road

) Town of Cortlandville

) Cortland County, New York

) SBL #88.00-01-39.000

) Servicer: Reliant Community

) Federal Credit Union

) 10 Benton Place

) Sodus, NY 14551

) (800)724-9282

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 29th day of November 2022 and Amended Notice of Pendency filed on March 24, 2023 and Affirmation by Matthew A. Ryen, Esq. dated August 3, 2023, the Affidavit of Merit, and Affidavit of Amount Due by Donna VanDamme who is Collection Manager for Reliant Community Federal Credit Union duly sworn to on May 23, 2023 together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that the defendant herein has been duly served with the Summons and

[000782-002457/5694505/1]
Order Confirming Referee Report and
Judgment of Foreclosure and Sale

1



2023-05117
08/23/2023 11:48:25 AM
COURT & TRUST

Elizabeth Larkin, County Clerk

Complaint in this action, and has not served any answer to the Complaint nor has his time to do so been extended; and it appearing that more than the legally required number of days has elapsed since defendant was so served; and Plaintiff having established to the Court's satisfaction that a judgment against defendants is warranted; and

UPON the Affidavit of Mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON compliance with CPLR 3408 the court held a mandatory settlement conference in this action on February 27, 2023; and the case having been released from the settlement conference part allowing Plaintiff to proceed in this action; and

UPON proof that non-appearing defendants are not absent, in accordance with RPAPL §1321(2); and

UPON a Referee having been appointed by Order dated May 4, 2023 to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Ronald T. Walsh, Esq. dated June 9, 2023 showing the sum of \$174,168.40 due as of the date of May 4, 2023 and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, if any, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Matthew A. Ryen, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in

the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the pursuant to the Terms of Sale and Foreclosure Auction Plan attached hereto, RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at Cortland County Courthouse the Foreclosure Auction Area, or the courtyard if the Referee is unable to conduct the sale due to social distancing restrictions, 46 Greenbush Street, Cortland, NY 13045 by and under the direction of Ronald T. Walsh, Esq, 45 Church Street, Cortland, New York 13045, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in the Cortland Standard; that said Referee must enforce any requirements regarding social distancing and face coverings in effect at the time of sale and the Terms of Sale shall include these requirements; and it is further

MGM

MGM

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for self or paying funds to self without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, Plaintiff may submit a letter application to the Court, MGM
~~on notice to Defendants, seeking a good cause extension of time in accordance with CPLR 2004~~
~~the time fixed by RPAPL § 1351(1) is extended~~
for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, (10%) ~~twenty-five percent (25%)~~ of the sum bid, unless MGM
the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the (10%) ~~twenty-five percent (25%)~~ deposit as required, the property shall MGM
immediately and on the same day be reoffered at auction and further, in the event that the first successful bidder fails to perform pursuant to the Terms of Sale, Referee may elect to sell to the second highest bidder, or subsequent bidder, if Purchaser defaults; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IOLA account in accordance with CPLR 2609;

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale,

which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of the public auction, with such interest or penalties which may have lawfully accrued thereon; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in an escrow or in his own name as Referee IOLA account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

MEM
FIRST: The Referee's fees for conducting the sale not to exceed \$750 ~~\$500.00~~ unless the property sells for \$50,000 or more. In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250.00 if it discontinues this action; for each adjournment or cancellation unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes,

assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the public auction. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$174,168.40 which includes interest at the note rate from July 1, 2020 until May 4, 2023, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,331.88 adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 3,416.25 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid to the Cortland County Treasurer by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the amount due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Michael C. Shute in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to the following, provided that they do not render title unmarketable: any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; superior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and

interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; ~~and it is further~~ ② **MGM**

Said property is commonly known as 3907 Hobart Hill Road, Town of Cortlandville,
Cortland County, New York.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ ^{MGM}
~~Schedule "A".~~

DATED: August 23, 2023
Cortland, New York

ENTER:

MGM

Hon. MARK G. MASLER
Supreme Court Justice

Elizabeth Larkin



CJ-2023-01488

08/23/2023 11:48:25 AM

JUDGMENT OF FORECLOSURE AND

Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmiackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At ^{1st Term} Part 1 of the Supreme Court
held in the County of Cortland, at the
Cortland Courthouse thereof, on the 28th
day of August, 2023.

PRESENT: HON. MARK G. MASLER, J.S.C.
JUSTICE OF THE SUPREME COURT

M&T Bank,

Plaintiff,

vs.

Stacey A. Whitcombe,

Defendants.

INDEX NO.: EF22-426

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:

15 Cherry Street

Homer, NY 13077

Section: 76.25 Block: 03 Lot: 24.000

Servicer Name: M&T Bank

Servicer Phone Number: 716-343-6260

UPON the Summons, Complaint, and Notice of Pendency filed in this action on October
3, 2022, the Notice of Motion dated August 1, 2023, the affirmation ^{15/ bfl} by ^{dated August 1, 2023} Ammar Jaber, Esq. ^{MGM} the
Affidavit Of Merit and Amount Due by Rachel M. Nowicki who is an Assistant Vice President of
M&T Bank, Plaintiff, duly sworn to on February 28, 2023, together with the exhibits annexed
thereto, all in support of Plaintiff's motion for an Order Confirming Referee Report and
Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons
and Complaint in this action, and has voluntarily appeared either personally or by an attorney or
has not served any answer to the Complaint or otherwise appeared, nor had their time to do so
extended; and it appearing that more than the legally required number of days has elapsed since
Defendants, Stacey A. Whitcombe, ^{was} were ^{so} served and/or appeared; and Plaintiff having ^{MGM}
established to the court's satisfaction that a judgment against defendants is warranted; and



2023-05217

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COURT & TRUST

Elizabeth Larkin, County Clerk

22-12791NY

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendant, Stacey A. Whitcombe, is not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Michael R. Cardinale, Esq., dated June 16, 2023, showing the sum of \$90,721.80 due as of the date in said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Ammar Jaber, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be

MGM
sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Cortland County Courthouse ^{Pursuant to The Terms of Sale and Foreclosure Auction Plan attached hereto}; by and under the direction of Michael R. Cardinale, Esq., with an address of 8432 Brewerton Road, Suite 100, Cicero, NY 13039; who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in the Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the

Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to

the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in the escrow or IDLA account, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$90,721.80 with interest at the note rate from March 2, 2023, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest,

and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$2,310.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

No ~~Additional Allowance: \$300.00 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;~~ *MGM*

Attorney Fees: \$5,225.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items

marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Stacey A. Whitcombe in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any

defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the

deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 15 Cherry Street, Homer, NY 13077.

~~The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.~~

DATED:

August 28, 2023
Cortland, New York

ENTER:

MGML
HON. MARK G. MASLER, J.S.C.

Elizabeth Larkin



CJ-2023-01579

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JUDGMENT OF FORECLOSURE ANI

Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At an ^{1a} I.A.S. Term, part _____ of the
Supreme Court of the County of Cortland
held in the Cortland Supreme Court in the
city of Cortland, New York on the
25th day of August,
20 23.

PRESENT: HON. HON. MARK G. MASLER
SUPREME COURT OF THE STATE OF NEW YORK

-----X
PNC BANK, NATIONAL ASSOCIATION

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

Plaintiff

INDEX #: EF20-350

VS

PUBLIC ADMINISTRATOR OF CORTLAND
COUNTY, JOHN T. BANEWICZ, SR.,
TREASURER AS ADMINISTRATOR OF THE
ESTATE OF RITA J. LEUBNER, JOEL A.
LEUBNER AS HEIR TO THE ESTATE OF
RITA J. LEUBNER, VANESSA MROZOWSKI
AS HEIR TO THE ESTATE OF RITA J.
LEUBNER, VICKI POUSSEUR AS HEIR TO
THE ESTATE OF RITA J. LEUBNER,
PEOPLE OF THE STATE OF NEW YORK

MORTGAGED PREMISES:
203 CENTRAL AVENUE
CORTLAND, NY 13045

Mortgage Servicer:
PNC Mortgage
Mortgage Servicer Phone Number:
844-532-7284

Defendant(s)
-----X

UPON the Summons, Complaint and Notice of Pendency filed in this action on March
12, 2020, the Notice of Motion dated July 13, 2023 and the affirmation ^{ls} ^{bf} by ^{dated July 13, 2023} Anthony J. Rooney
the affidavit of merit and amount due by Barb Essman who is an Authorized Signer of PNC
Bank, National Association, duly sworn to Lori A. Wysong on May 18, 2021, together with the
Exhibits annexed ^H hereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and
Sale; and



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14 Pages
Elizabeth Larkin, County Clerk

UPON proof that each of the Defendants herein has been duly served with the Summons and Complaint, has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants Public Administrator of Cortland County, John T. Banewicz, Sr., Treasurer as Administrator of the Estate of Rita J. Leubner, Joel A. Leubner, Vanessa Mrozowski, Vicki Pousseur and People of the State of New York who have not answered or appeared were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a Judgment against defendants is warranted; and

UPON the Affidavit¹⁵¹ of mailing reflecting compliance with CPLR §3215(g)(3)(iii); and

MBM [UPON proof that the non-appearing defendants Public Administrator of Cortland County, John T. Banewicz, Sr., Treasurer as Administrator of the Estate of Rita J. Leubner, Joel A. Leubner, Vanessa Mrozowski, Vicki Pousseur and People of the State of New York are not absentee¹⁵¹ in accordance with RPAPL § 1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Edward W. Goehler, Esq. dated June 2, 2023, showing the sum of \$73,899.00, due as of May 27, 2021, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Anthony J. Rooney, attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all aspects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in *in the Order of Reference,* MGM
the Complaint and ~~as hereafter described,~~ or such part thereof as may be sufficient to discharge the mortgage debt, the expense of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the ~~Main Lobby of the Cortland County Courthouse, 46 Greenbush Street, City of Cortland and to the~~
pursuant to the Terms of Sale and Foreclosure Auction Plan attached hereto MGM
extent possible, at ~~AM/PM~~ by and under the direction of Edward W. Goehler, Esq., 11 Groton Ave, Cortland, NY 13045, (607) 758-8080 who is appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from Appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representatives is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its

successors and/or assigns, or its representatives; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee cannot conduct the sale (the time fixed by RPAPL § 1351(1) is extended) within 90 days of the date of the judgment, in accordance with CPLR § 2004, for the Referee to conduct the sale as soon as reasonably practicable; and it is further

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ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the Court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase process shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay then percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IDLA account in his own name as Referee, in accordance with CPLR § 2609; and it is further

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ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of the completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a Court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in his escrow or JOLA Account and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

MGM

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR § 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more OR in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL § 1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale.

FOURTH: The Referee shall also pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report. \$73,899.00 with interest at the note rate from November 1, 2018 to May 27, 2021, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements. \$4,372.33 adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

No Additional Allowance. ~~\$50.00~~ is hereby awarded to Plaintiff in addition to costs, MGM
~~with interest at the statutory judgment rate from the date of entry of this judgment,~~
pursuant to CPLR Article 83;

Attorney Fees. ~~\$6,785.50~~ 15,650 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment.

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354(4) and in accordance with local County rules regarding Surplus monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second" and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above; when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth"

above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that the property is sold in one parcel in "as is" physical order and condition, subject any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; any rights pursuant to CPLR § 317, § 2003 and § 5015, or any appeal of the underlying action or additional litigation brought by any Defendant on its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR § 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the Court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve the Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Action Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the Court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

ORDERED, that the sale shall be conducted in accordance with the applicable
judicial district foreclosure auction plan and rules in effect at the time of the auction, and it
is further

~~The legal description of the mortgaged property referred to herein is annexed hereto as
Schedule A.~~

ENTER,

Dated: August 28, 2023
Cortland, New York

MGM
HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

Elizabeth Larkin



CJ-2023-01590
08/29/2023 01:20:40 PM
JUDGMENT OF FORECLOSURE AN
14 Pages
Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmiackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At the Cortland County Supreme Court,
held at 46 Greenbush Street, Suite 301,
Cortland, NY 13045, on the 4th day of
May, 2023.

PRESENT: HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

AURORA FINANCIAL GROUP, INC.
Plaintiff,

v.

LORI ANNE HENRY; KEVIN TOBIAS
Defendant(s)

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE

INDEX NO.: EF21-634

MORTGAGED PROPERTY:
2779 MARICLE RD.,
CINCINNATUS, NY 13040

SBL: 121.00-05-02.000

SERVICER: Roundpoint
Mortgage Servicing Corporation

SERVICER'S PHONE NO.:
877-426-8805

UPON the Summons, Complaint, and Notice of Pendency filed in this action on December 17, 2021, the re-filed Notice of Pendency filed on January 14, 2022, the Notice of Motion dated March 28, 2023, the Affirmation of Amanie A. Akarah, Esq., dated March 28, 2023, the Affidavit of Computation executed by Cassie Dean, Senior Foreclosure Specialist, of RoundPoint Mortgage Servicing Corporation as servicer for Aurora Financial Group, Inc., Plaintiff, duly sworn to on January 3, 2023, together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

RECEIVED
03/29/2023



2023-01889
05/04/2023 09:30:08 AM
COURT & TRUST
12 Pages
Elizabeth Larkin, County Clerk

UPON proof that each of the defendants herein has not served any answer to the complaint or otherwise appeared, nor had their time to do so extended, and it appearing that more than the legally required number of days has elapsed since all defendants were served; and Plaintiff having established to the Court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavits of mailing reflecting compliance with CPLR 3215(g)(3); and

UPON proof that non-appearing defendants are not absent, in accordance with RPAPL §1321(2); and

UPON the appointment of a Referee by Order dated November 30, 2022, to compute the amount due to Plaintiff upon the note and mortgage set forth in the complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Deborah Wolf Miller, Esq., dated February 28, 2023, showing the sum of \$250,932.16 due as of December 5, 2022, and showing that the mortgaged property may not be sold in parcels; and

UPON a finding that the foreclosure matter may resume in normal course pursuant to AO 35/22; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Amanie A. Akarah, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the

MGM

mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, in accordance with the "Sixth Judicial District Foreclosure Auction Plan" within 90 days of the date of entry of this Judgment, in one parcel, at a public auction at ~~the~~ pursuant to the Terms of Sale attached as Exhibit A hereto at the Cortland County Courthouse, MGM

by and under the direction of Deborah Wolf Miller, Esq., whose address is P.O. Box 538, Ithaca, NY 14851-0538, (607) 277-0272, and who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and that said Referee must enforce any requirements regarding social distancing and face coverings/masks in effect at the time of sale; and it is further

~~ORDERED, ADJUDGED AND DECREED that compliance with the "Sixth Judicial District Foreclosure Auction Plan," attached to, and incorporated herein, as Schedule B, is required; and it is further~~ MGM

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that she ~~he~~ is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for herself ~~himself~~ or paying funds to herself ~~himself~~ without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further MGM

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or ^{account} SOLA in his/her own name as Referee, in accordance with CPLR 2609; and it is further

MGM

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an escrow or ^{1201A account} X, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR ^{\$750 unless the property sells for \$50,000 or more. In the event a sale was cancelled,} 8003(b), not to exceed ~~\$500.00~~. Plaintiff shall compensate the Referee in the sum of \$ 250 ^{100 postponed} for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). In the event the property is purchased by a third-party, any such taxes, assessments, sewer rent and water rates shall be pro-rated as of the date of the foreclosure auction, and the third-party purchaser shall assume all responsibility for same as of said date. Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$250,932.16, with interest at the note rate from December 5, 2022, through the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending

consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,643.01 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$15,960.00 ~~\$5,960.00~~ is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid in accordance with local County rules regarding Surplus Monies, by the officer conducting the sale, within five days after receipt in accordance with RPAPL § 1354(4); and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified

in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, and that any transfer tax shall be paid in accordance with Tax Law § 1404 shall be paid by the purchaser, not by the Referee from sale proceeds; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against defendant, Lori Anne Henry, unless discharged in bankruptcy in accordance with RPAPL §1371, if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property; and any rights pursuant to CPLR 317, 2003, and 5015, and RPAPL 1302(a) or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure, including standing; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and

maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further *

Said property is commonly known as 2779 MARICLE ROAD, CINCINNATUS, NY 13040.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *MGM*

~~Schedule A:~~

DATED: May ⁴, 2023
Cortland, New York

MGM
HON. MARK G. MASLER, J.S.C.

MGM * ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Elizabeth Larkin

	CJ-2023-00821 05/04/2023 09:30:08 AM JUDGMENT OF FORECLO 12 Pages Elizabeth Larkin, County Clerk
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**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]

1a
At Part _____ of the Supreme Court held
in and for the County of Cortland, at the
courthouse located at 46 Greenbush Street,
Cortland, NY, on the 4th day of
May, 2023.

PRESENT: HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

CHEMUNG CANAL TRUST COMPANY,

Plaintiff,

v.

JOSEPH D. EVANGELISTA, CHEMUNG CANAL
TRUST COMPANY, JOHN BARDEN, and
REBECCA MUNSON

Defendants.

INDEX NO.: EF22-006

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF FORECLOSURE
AND SALE

MORTGAGED PROPERTY:
6271 State Route 41
Scott, NY 13077

SBL No.: 35.03-01-04.000
Mortgage Servicer Chemung Canal
Trust Company

Telephone Number (800) 836-3711

UPON the Summons, Complaint, and Notice of Pendency filed in this action on January
5, 2022 the Notice of Motion dated February 15, 2023, the affirmation of Stuart P. Frame, Esq.
dated February 15, 2023, the affidavit of merit and amount due by Heidi Wood who is Assistant
Treasurer of Chemung Canal Trust Company, duly sworn to on June 2, 2022, together with the
exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and
Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons

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and Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants Joseph D. Evangelista, Chemung Canal Trust Company, John Barden, and Rebecca Munson were so served; and Plaintiff having established to the court's satisfaction that a judgment against Defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants Joseph D. Evangelista, Chemung Canal Trust Company, John Barden, and Rebecca Munson are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed by Order dated January 11, 2023 to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Ronald T. Walsh, Esq. dated January 26, 2023, showing the sum of \$51,419.80 due as of May 19, 2022 and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Stuart Frame, Esq., attorney for Plaintiff, it is hereby

ORDERED, that the motion is granted without opposition; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report of Ronald T. Walsh, Esq., dated January 26, 2023, is hereby amended to state that the interest amount of \$1,574.51 was calculated from March 15, 2021 through May 19, 2022, and is hereby ratified and confirmed as so amended; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPA PL be pursuant to the Terms of Sale attached hereto as Exhibit A sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the

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Cortland County Courthouse, 46 Greenbush Street, Cortland, New York, by and under the direction of Ronald T. Walsh, Esq., 45 Church Street, Cortland, NY 13045, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED and DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute the Memorandum of Sale for the purchase of the property, in the form attached hereto and incorporated herein, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in

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which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED and DECREED that in the event the first successful bidder fails to execute the Memorandum of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall deposit the down payment and proceeds of sale, as necessary, in the Referee's IOLA account, in accordance with CPLR §2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff (or its affiliate, as defined

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in paragraph (a) or subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that said Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in the Referee's IOLA account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The statutory fees of said Referee for sale of the real property; not to exceed \$750.00, pursuant to CPLR 8003(b), unless the real property shall sell for \$50,000 or more, in which event, the Referee may apply to the court for additional compensation. If a sale is cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens

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upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$51,419.80, the amount so reported as due aforesaid, together with interest at the contract thereon from the date computed to in the Referee's Report of Amount Due until the date of entry of this judgment, with interest thereafter at the statutory rate until the date of transfer of the Referee's deed.

Costs and Disbursements: \$ 2,495.60 hereby adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the

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date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650⁰⁰ is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

Additional Advances: The amount of any advances which plaintiff may make for taxes, insurance premiums or other advances necessary to preserve or maintain the premises pending the consummation of this foreclosure sale, whether such advances were made prior to or after entry of judgment, so long as such advances were not included in the Referee's Report of Amount Due and are documented by receipts provided to the Referee, all together with interest thereon pursuant to the note and mortgage;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at said sale shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its/her/his assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First" , "Second", and

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"Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds; and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third," and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Joseph D. Evangelista in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to the following, provided that they do not render title unmarketable: any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same any rights of tenants or persons in possession of the subject property; superior liens of record, if any, except those liens addressed in RPAPL §1354;

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any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff has established standing in this action; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

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ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

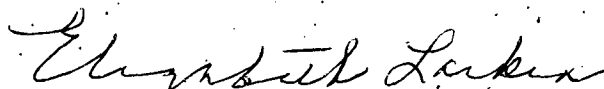
Said property is commonly known as 6271 State Route 41, Scott, New York 13077.

Dated: May 4, 2023
Cortland, New York

ENTER



HON. MARK G. MASLER
Supreme Court Justice



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**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]

At an Term of the Supreme Court of
the State of New York, held in and for the
County of Cortland at the Courthouse
thereof, Supreme Court Building, 46
Greenbush Street, Cortland, New York on the
17th day of February, 2023.

PRESENT:

Honorable MARK G. MASLER
Justice, Presiding.

-----X
TRUIST BANK, SUCCESSOR BY MERGER TO SUNTRUST BANK
Plaintiff.
-against-
MICHAEL J. MERSHON; CORTLAND COUNTY DEPARTMENT OF SOCIAL SERVICES; MIDLAND FUNDING LLC A/P/O CITIBANK NA,
Defendants.
Index No: EF20-163
RTJ No. 2020-0242-C
JUDGMENT OF FORECLOSURE AND SALE
Mortgaged Premises:
3651 Levydale Park
Cortland, New York 13045
Mortgage Servicer: BB&T / Truist
Mortgage Servicer Phone #: 366-550-0236
-----X

Upon the summons and complaint filed herein on February 5, 2020 and notice of pendency of action previously filed herein on February 5, 2020, and on the attorney's statement of Jose Hasbun, Esq., dated June 28, 2022, demonstrating that all of the defendants have been duly served with the summons and complaint herein and the affidavits of service of the defendants previously filed herein, and upon the Order entered herein on August 22, 2022 appointing John A. Delvecchio, Esq., as referee to ascertain and compute the amount due to the plaintiff pursuant to the note and mortgage and to protect the lien of said mortgage, and to examine and report whether the mortgage premises can be sold in parcels; and

Upon reading and filing the report of the referee dated November 28, 2022 from



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which report it appears that the sum of \$121,339.82 was due to plaintiff, as of December 1, 2022, on the note and mortgage described in the complaint, and that the mortgaged premises should be sold in one parcel; and

Upon reading and filing the affirmation of regularity of Jamie C. Krapf, Esq. dated January 9, 2023, from which it appears that this action was brought to foreclose a mortgage on certain real property situated in the County of Cortland and State of New York more commonly known as 3651 Levydale Park, Cortland, New York 13045 and that the whole amount secured by said mortgage is due and payable as computed in the aforesaid Referee's report, and that all of the defendants herein have been duly served with the summons and complaint, and upon the entry of default judgment on plaintiff's foreclosure complaint against the defendants, and that none of the defendants is an infant, incompetent or absentee,

"Sale" is herein defined as the foreclosure auction date.

NOW, on motion of McCabe, Weisberg & Conway, LLC, attorneys for the plaintiff, it is

ORDERED, ADJUDGED and DECREED, that the report of the Referee, John A. Delvecchio, Esq., dated November 28, 2022, by and the same is hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED and DECREED, that plaintiff is entitled to judgment establishing the validity of said mortgage and that the plaintiff is entitled to recover upon said mortgage herein the sum of \$121,339.82, with interest thereon from Friday, December 2, 2022 to date of the closing of title of the referee's sale of the mortgaged premises, and also any amount paid by plaintiff for local realty taxes, water charges and assessments, hazard and F.H.A. Insurance, and the preservation or protection of the property; and it further

~~**ORDERED, ADJUDGED and DECREED**, that said premises affected by said~~

MEM

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction pursuant to the Terms of Sale attached as Exhibit A hereto (the Terms of Sale), at the Cortland County Courthouse by and under the direction of John A. DelVecchio, Esq., 4030 West Road, Cortland, New York, 13045, (607) 299-4796, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and signed Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by

RPAPL § 1351 (1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the Terms of Sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days

after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an escrow or IOLA account in his/her own name; and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003 (b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the

property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL § 1354 (2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$121,339.82 with interest at the note rate from December 1, 2022 until date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,295 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the

date of entry of this judgment;

No additional allowance is hereby awarded to Plaintiff;

Attorney Fees: \$4,950.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354 (4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of

sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Michael J. Mershon in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the

filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355 (1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL § 1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment

stating whether the sale has occurred and the outcome thereof.

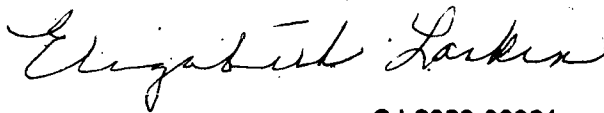
Said property is commonly known as 3651 Levydale Park, Cortland, New York 13045.

Dated: March 6, 2023
Cortland, New York

ENTER



HON. MARK G. MASLER
Supreme Court Justice



CJ-2023-00321

03/07/2023 02:02:10 PM

JUDGMENT OF FORECLOSURE AN

12 Pages

Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]

At Part a term of the Supreme Court held in
the County of Cortland, at the Cortland
Courthouse thereof, on the 21st day of
April, 2023.

PRESENT: Hon. Hon. Mark G Masler
JUSTICE OF THE SUPREME COURT

Carrington Mortgage Services, LLC,
Plaintiff(s),

v.

Ario P. Ryan a/k/a Ario Ryan; Michelle L. Ryan a/k/a
Michelle Ryan; Jefferson Capital Systems, LLC,

Defendant(s).

INDEX NO. EF22-430

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:
68 Cortland Street
Marathon, NY 13803

SBL #: Section 157.12 Block
01 Lot 10.000

Mortgage Servicer:
Carrington Mortgage
Services, LLC

Mortgage Servicer Phone #:
(800) 561-4567

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 4th
day of October, 2022, the Notice of Motion dated March 31, 2023, the affirmation by Barbara
Dunleavy, Esq., Sworn to March 31, 2023, the affidavit of merit and amount due by Elizabeth Corral, who is Default
Fulfillment Manager, duly sworn to on December 13, 2022, together with the exhibits annexed
thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons
and Complaint in this action, and has not served any answer to the Complaint or otherwise
appeared, nor had their time to do so extended; and it appearing that more than the legally
required number of days has elapsed since defendants, Ario P. Ryan, a/k/a Ario Ryan and



2023-01789
04/26/2023 10:19:05 AM
COURT & TRUST

Elizabeth Larkin, County Clerk

Michelle L. Ryan, a/k/a Michelle Ryan and Jefferson Capital Systems, LLC, were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants, Aric P. Ryan, a/k/a Aric Ryan and Michelle L. Ryan, a/k/a Michelle Ryan and Jefferson Capital Systems, LLC, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Michael R. Cardinale Esq. dated March 16, 2023, December 1, 2022 showing the sum of \$109,406.89 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by LOGS Legal Group LLP f/k/a Shapiro, DiCaro & Barak, LLC, attorneys of record for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in sanctified by the order of reference dated March 8, 2023, the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the

RPAPL be sold within 90 days of the date of this Judgment, in one parcel, at a public auction at pursuant to the terms of sale attached as Exhibit A hereto (the Terms of Sale) the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of Michael R. Cardinale, Esq., 8432 Brewerton Road, Cicero, NY 13039, (315)698-9630 who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in *the Cortland Standard*; and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the Judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in the Referee's I.O.L.A. account maintained for legal clients, in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents or water rates, which are, or may become, liens on the property at the time of sale with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in their I.O.L.A. account maintained for legal clients, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes,

assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$109,406.89 with interest at the note rate from December 1, 2022 until the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,187.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0.00 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$2,900.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and funds shall be deposited with the Clerk of the Court; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due to Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the

time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Aric P. Ryan and Michelle L. Ryan, unless discharged in bankruptcy, in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

~~**ORDERED, ADJUDGED AND DECREED** that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further~~

~~**ORDERED, ADJUDGED AND DECREED** that the mortgage and any necessary loan documents related to such Mortgage be, and the same hereby are, reformed by substituting therein the Intended Mortgaged premise, which is the correct description, in place of the mortgage premise description which is erroneous. A copy of the Intended Mortgaged premise is attached hereto as Schedule "A" and made a part hereof; and it is further~~

~~**ORDERED, ADJUDGED AND DECREED** that the Cortland County Clerk note in the original recorded mortgage that the legal description is hereby reformed.~~

MGM

Said property is commonly known as 68 Cortland Street, Marathon, NY 13803.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *MGM*

~~Schedule A.~~

ENTER

DATED: *April 25, 2023*
Cortland, New York

MGM

Hon. Hon. Mark G Masler
Justice of the Supreme Court

Elizabeth Larkin



CJ-2023-00760
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JUDGMENT OF FORECLOSURE AI
Elizabeth Larkin, County Clerk

Attorney certification pursuant
to 22NYCRR §130-1.1-a
is affixed to inside cover.

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]

At ¹²¹Part of the Supreme Court of the State of New York, held in and for the County of Cortland at the Courthouse thereof, 46 Greenbush Street, Suite 301, Cortland, NY 13045 on the 6th day of March, 2023.

P R E S E N T: Honorable Molly Reynolds Fitzgerald, J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

-----X
THE BANK OF NEW YORK MELLON TRUST COMPANY, N.A., FORMERLY KNOWN AS THE BANK OF NEW YORK TRUST COMPANY, N.A. AS SUCCESSOR-IN-INTEREST TO ALL PERMITTED SUCCESSOR AND ASSIGNS OF BANK ONE, NATIONAL ASSOCIATION AS TRUSTEE FOR ACE SECURITIES CORP. HOME EQUITY LOAN TRUST, SERIES 2002-HE1 ASSET BACKED PASS-THROUGH CERTIFICATES,

Plaintiff,

-against-

KEVIN L. MOWRY; RANDIE J. MOWRY; CITIFINANCIAL COMPANY (DE); NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE,

"JOHN DOE #1" through "JOHN DOE #12," the last twelve names being fictitious and unknown to plaintiff, the persons or parties intended being the tenants, occupants, persons or corporations, if any, having or claiming an interest in or lien upon the premises described in the complaint,

Defendant(s).

INDEX NO.: EF15-444

R55 No. 2017-0614-M

ORDER CONFIRMING REFEREE
REPORT, DEFAULT JUDGMENT,

AND JUDGMENT OF
FORECLOSURE AND SALE

Mortgaged Property:
17 Front Street,
Cortland, NY 13045

COUNTY: CORTLAND

Section 86.35,
Block 01,
Lot 18.100

UPON reading the Summons, Complaint and Notice of Pendency filed in this action on

MGM
July 17, 2015; the Notice of Pendency duly refiled May 17, 2018; and July 1, 2021 on the Notice of Motion and the amended Notice of Motion dated November 30, 2020 dated July 3, 2018, the affirmation of Hedva D. Haviv, Esq. and the exhibits annexed thereto,

15-021373 - FrP

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COURT & TRUST
14 Pages
Elizabeth Larkin, County Clerk

and upon the affidavit of merit and amount due by Sean Bishop who is Contract Management

Coordinator of Ocwen Loan Servicing, LLC, duly sworn to on August 25, 2017; together with

and the supplemental affirmation of Alain Cesar, Esq., dated November 11, 2020,
the exhibits attached thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure

and Sale; and

UPON proof that each of the Defendants herein have been duly served with the Summons and Complaint in this action, and have not served any answer to the Complaint or otherwise appeared, nor had their time to so do extended; and Plaintiff having established to the court's satisfaction that judgment against the defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants Kevin L. Mowry; Randie J. Mowry; Citifinancial Company (DE); New York State Department of Taxation and Finance, are not absent, in accordance with RPAPL §1321(2); Upon information and belief, that all of defendants are of full age; that none of defendants are in the armed services of the United States of America. That more than the legally required time period has elapsed since the due service of the Summons and Complaint herein upon all of defendants. Upon information and belief no defendant is incompetent. The following defendants were served out of state: Kevin L. Mowry; Randie J. Mowry. The following defendants did not answer or appear and their time to answer has expired: Kevin L. Mowry; Randie J. Mowry; Citifinancial Company (DE); New York State Department of Taxation and Finance. Accordingly, these defendants are in default.

A Referee having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Christopher Edward Burke dated February 23, 2018, showing the sum of \$ 184,517.07 as of August 9, 2017 and that the mortgaged property cannot be sold in parcels; and

UPON proof of due notice of this application upon all parties entitled to receive same, and upon all of the prior proceedings and papers filed herein;

NOW, on motion by Hedva D. Haviv, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint in this action ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at public auction at the Cortland County Courthouse ^{in accordance to the Terms of Sale annexed hereto as} Exhibit A, by and under the direction of Christopher Edward Burke, Esq., who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with

RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment"), and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an escrow or TOLA account, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed ~~\$500.00~~ ^{16750.00} unless the property sells for

MGM

\$50,000.00 or more -OR- in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be held responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$184,517.07 with interest at the note rate from October 01, 2008 until August 09, 2017, together with any advances together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation

of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,080.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

~~Additional Allowance: \$_____ is hereby awarded to the Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;~~

• Attorney Fees: \$4,950.00 is hereby awarded to the Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment

thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds; and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED, AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any state of facts that an inspection of the property would disclose; any state of facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR §317, §2003

and \$5015 or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property on production of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR §308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within thirty days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless the Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED ADJUDGED AND DECREED that defendants Kevin L. Mowry; Randie J. Mowry; Citifinancial Company (DE); New York State Department of Taxation and Finance, are deemed to be in default; and it is further

ORDERED ADJUDGED AND DECREED that The Bank of New York Mellon Trust Company, N.A., as Successor-in-Interest to all Permitted Successor and Assigns of Bank One, National Association as Trustee for ACE Securities Corp. Home Equity Loan Trust, Series 2002-HE1 be substituted into the caption in the place and stead of Plaintiff, and, following such substitution, that the Clerk of the Court amend the docket and electronic docket accordingly; and it is further

ORDERED ADJUDGED AND DECREED that the caption shall read as follows:

-----X
The Bank of New York Mellon Trust Company, N.A., as
Successor-in-Interest to all Permitted Successor and Assigns
of Bank One, National Association as Trustee for ACE
Securities Corp. Home Equity Loan Trust, Series 2002-HE1
Asset Backed Pass-Through Certificates,

Plaintiff,

v.

Kevin L. Mowry; Randie J. Mowry; Citifinancial Company
(DE); New York State Department of Taxation and Finance,

Defendants.

-----X

; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 17 Front Street, Cortland, New York 13045.

MGM
~~The legal description of the mortgaged property referred to herein is annexed hereto as Schedule "A".~~

DATED: March 6, 2023
Cortland, New York.

ENTER:

MGM

Hon. MARK G. MASLER
Supreme Court Justice

Elizabeth Larkin



CJ-2023-00318

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JUDGMENT OF FORECLOSURE AN
14 Pages
Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]

At a term of Supreme Court of the State of New York
held in and for the County of Cortland, at the
County Courthouse thereof, on the 6th
day of March, 2022 3

PRESENT: HON. MARK G. MASLER, J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

CHARLOTTE HAWKINS, M.D.,

-VS-

DAVID MAYO, M.D.; MANOJ K. KUMAR, M.D.;
NEW YORK STATE DEPARTMENT OF TAXATION
AND FINANCE; GREEN NOTE CAPITAL
PARTNERS, INC.; "JOHN DOE" AND "JANE DOE,"

Defendants.

Index No. EF22-262

RSB No. 2022-0202-C

JUDGMENT OF FORECLOSURE
AND SALE

Property address:
4077 West Road
Cortland, NY 13045

On the Summons and Verified Complaint duly filed in this action on the 24th day of June, 2022, and upon the due Notice of Pendency of this action containing all the particulars required to be stated therein was duly filed in the Office of the Clerk of the County of Cortland on the 24th day of June, 2022, ~~and a status conference having been held and closed by the Court on August 11, 2022;~~ and on reading and filing the Affirmation of Regularity of Joel I. Ross, Esq., dated the September 2, 2022 showing that each of the defendants herein have been duly served with the Summons and Complaint in this action, or have voluntarily appeared by their respective attorneys, and stating that more than the legally required number of days had elapsed since said defendants were so served and/or appeared; and that none of the defendants had served any answer to said Complaint; nor had their time to do so been extended; and an Order of Reference having been duly made to compute the amount due to the Plaintiff upon the note and mortgage set forth in the Complaint and to examine and report whether the mortgaged premises can be sold in parcels,



2023-00916

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8 Pages
Elizabeth Larkin, County Clerk

AND on reading and filing the report of Patrick M. Snyder, Esq., the Referee named in said Order of Reference, by which his Oath and Report dated January 20, 2022¹³ it appears that the sum of \$626,439.52 was due thereon at the date of said Report, and that the mortgaged premises should be sold in one parcel.

NOW, upon proof of due notice of this application upon all parties who had not waived the same,

ON MOTION OF AMANDA C. SHAW, attorney for the Plaintiff, it is

ORDERED, ADJUDGED AND DECREED, that the said Report of the said Referee be, and the same is hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged premises, and if not sold sooner, any and all personal property in which the Plaintiff has a security interest, as described in the Complaint in this action or such part of the real property thereof as may be sufficient to discharge the mortgage debt, the expense of the sale and the costs of this action as provided by the Real Property Actions and Proceedings Law be sold at public auction at the Cortland County Courthouse, 46 Greenbush Street, Cortland, County of Cortland, State of New York, ^{in accordance to the Terms of Sale attached as Exhibit A hereto} by and under the direction of Patrick M. Snyder, Esq., who is hereby appointed Referee for that purpose; that the plaintiff or the Referee shall schedule the foreclosure auction with the Supreme Court Clerk of ^(Cortland) ~~Chemung~~ County and, after a date and time is approved, the Referee shall give public notice of the time and place of such sale according to law and the practice of this court, in an official publication, to wit: Cortland Standard, and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee must enforce any requirements currently in effect at the time of sale regarding social distancing and face coverings as a condition of participation in the auction.

ORDERED, ADJUDGED AND DECREED, that the said sale shall be in "as is" condition and subject to all assessments, rights of occupants, if any, easements and restrictions of record, right of the public in and to any public highway running through or adjoining the property, zoning, environmental and other laws, ordinances, rules and regulations, any state of facts an accurate, current survey would reveal, right of redemption of the United States, if any, and water rates which are at the time of sale a lien on the premises, together with such interest or penalties as may have lawfully accrued thereon to the date of payment,

AND that the Plaintiff or any other parties to this action may become the purchaser or purchasers at such sale; that in case the Plaintiff shall become the purchaser at the said sale, it shall not be required to make any deposit thereon; that said Referee execute to the purchaser or purchasers on such sale a Deed of the premises sold; that such Referee on receiving the proceeds of such sale shall deposit the proceeds of sale in his own name as Referee, in an escrow or IOLA account, and shall thereafter make the following payments and his checks drawn for that purpose:

FIRST: The statutory fees of said Referee for conducting the sale of \$750.00.

SECOND: Any and all unpaid real property taxes and assessments.

THIRD: The expenses of the sale including posting and advertising.

FOURTH: Said Referee shall also pay to the Plaintiff or its attorneys as follows:

(a) Costs and disbursements. ^{\$2,134.80} The sum, adjudged to the Plaintiff for statutory costs and disbursements in this action as taxed by the County Clerk of the County of Cortland, with at the statutory judgment rate interest from the date hereof; MGM

(b) Attorneys' Fees. The sum of \$ 4173.50, adjudged to the Plaintiff for reasonable attorneys' fees, as provided in paragraph (12) of the Mortgage;

(c) Amount Due per Referee's Report. The sum of \$626,439.52, the said amount so reported due as aforesaid together with the legal interest thereon from the date set forth in the Report to the date of judgment at the contractual rate of 6.75% and from the date of judgment forward at the statutory rate of 9.0% per annum, applicable for non-consumer debt, or so much thereof as the purchase money of the mortgaged premises will pay of the same which sum may include any expenses necessarily paid by the Plaintiff to preserve the premises not previously included in any computations; and

FIFTH: That in case the Plaintiff be the purchaser of said mortgaged premises at said sale, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff a Deed of the premises sold upon the payment to said Referee of the amounts specified above in items marked "First", "Second" and "Third"; that the balance of the amount bid, after deducting the amounts paid by the Plaintiff, for Referee's fees, and advertising expenses, shall be allowed to the Plaintiff as specified above in item marked "Fourth"; that if after so applying the balance of the amount bid, there shall be a surplus over and above said amounts due to the Plaintiff, the Plaintiff shall pay to said Referee, upon delivery of said Referee's Deed, the amount of such surplus; that said Referee on receiving said several amounts from Plaintiff shall then deposit the balance.

That said Referee deposit the surplus money, if any, with the Clerk of the County of Cortland within five days after the same shall be received and be ascertainable to the credit of this action, to be withdrawn only on the written order of the Court, that the said Referee make his Report of such sale under oath showing the disposition of the proceeds of the sale and file it with the Clerk of the County of Cortland within thirty days after completing the sale and executing the proper conveyance to the purchaser and that if the proceeds of such sale be insufficient to pay the amount reported due the Plaintiff with interest and costs as aforesaid, the Plaintiff recover of Defendant, David Mayo, M.D., the whole deficiency or so much thereof as the Court may determine to be just and equitable of the mortgage debt remaining unsatisfied after the sale of the mortgaged premises and the application of the proceeds thereof, provided said Defendant has not been discharged in bankruptcy and provided a motion for a deficiency judgment shall be as

prescribed by Section 1371 of the Real Property Actions and Proceeding Law within the time limited therein, and the amount thereof is determined and awarded by an order of this Court as provided for in said action; and it is further

ORDERED, ADJUDGED AND DECREED, that the purchaser or purchasers at such sale be let into possession on production of the Referee's Deed; and it is further

ORDERED, ADJUDGED AND DECREED, that each and all of the Defendants in this action and all persons claiming under them, or any or either of them, after the filing of such Notice of Pendency of this action, be and they hereby are, barred and foreclosed of all right, claim, lien, title, interest and equity of redemption in the said mortgaged premises and each and every part thereof; and it is further

ORDERED, ADJUDGED AND DECREED, that the liens of the Plaintiff other than the mortgage or mortgages that are the subject matter of this action also be foreclosed herein as though the Plaintiff was named as a party Defendant, specifically reserving to the Plaintiff its right to share in any surplus monies as a result of such position as a lien creditor.

ORDERED, ADJUDGED AND DECREED, that this judgment shall be without prejudice to subsequent actions by plaintiff to recover reasonable compensation for legal services performed after the date of this judgment.

ORDERED, ADJUDGED AND DECREED, that the Foreclosure Sale shall take place ~~on~~ *within 90 days of the date of this Judgment* ~~or before~~ _____; and it is further

ORDERED, ADJUDGED AND DECREED, that Plaintiff's Counsel shall provide the referee with the "Foreclosure Action Surplus Monies Form" promulgated by the Office of the Court Administration and the referee shall complete and file the form with the Cortland County Clerk and provide the court with an entered copy within thirty (30) days of the sale.

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~~That a description of the said mortgaged premises hereinbefore mentioned, is annexed~~
~~hereto as Exhibit A - Legal Description.~~

DATED: March 6, 2023
Cortland, New York

ENTER:

MGML
Hon. Mark G. Masler
Justice Supreme Court

Elizabeth Larkin



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JUDGMENT OF FORECLOSURE AN
8 Pages
Elizabeth Larkin, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]

At ^{1st} Term of the Supreme Court held
in and for the County of Cortland, at the
courthouse located at 46 Greenbush Street,
Cortland, NY, on the 4th day of
November, 2022.

PRESENT: Hon. Mark G. Masler
JUSTICE OF THE SUPREME COURT

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

U.S. BANK NATIONAL ASSOCIATION, NOT IN
ITS INDIVIDUAL CAPACITY BUT SOLELY AS
TRUSTEE FOR THE RMAC TRUST, SERIES 2018
G-CTT,

Plaintiff,

v.

DANIELLE BARROWS, AS SURVIVING SPOUSE
AND ADMINISTRATRIX OF THE ESTATE OF
DAVID B. BARROWS A/K/A DAVID BARROWS,
TOWN OF PREBLE, NEW YORK STATE
DEPARTMENT OF TAXATION AND FINANCE,
UNITED STATES OF AMERICA BY THE
INTERNAL REVENUE SERVICE, B. B., A MINOR,
J. B., A MINOR, D. B., A MINOR,

Defendants.

INDEX NO.: EF21-392
RJI NO. 2022-0086-M
**ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF FORECLOSURE
AND SALE**

MORTGAGED PROPERTY:
1904 Preble Road
Preble, NY 13141

SBL No.: 027.010-0002-037.000

Mortgage Servicer Rushmore Loan
Management Services, LLC

Telephone Number: 888-504-6700

UPON the Summons, Complaint, and Notice of Pendency filed in this action on July 23,
2021 and a Supplemental Notice of Pendency filed on August 26, 2021 the Amended Complaint
and Supplemental Summons filed on August 4, 2021, the Notice of Motion dated October 3,
2022, the affirmation of Stuart P. Frame, Esq. dated October 3, 2022, the affidavit of merit and
amount due by Mario Selva who is Assistant Vice President of Rushmore Loan Management

101507-1

U.S. Bank National Association, etc. vs. Danielle Barrows, et al.
Cortland County Supreme Court, Index #: EF21-392



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13 Pages
Elizabeth Larkin, County Clerk

Services, LLC, duly sworn to on February 10, 2022, together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and United States of America by the Internal Revenue Service has/have voluntarily appeared either personally or by an attorney, and Danielle Barrows, As Surviving Spouse and Administratrix of the Estate of David B. Barrows A/K/A David Barrows, Town of Preble, New York State Department of Taxation and Finance, B. B., A Minor, J. B., A Minor, D. B., A Minor, has/have not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendants Danielle Barrows, As Surviving Spouse and Administratrix of the Estate of David B. Barrows A/K/A David Barrows, Town of Preble, New York State Department of Taxation and Finance, B. B., A Minor, J. B., A Minor, D. B., A Minor, were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants Danielle Barrows, As Surviving Spouse and Administratrix of the Estate of David B. Barrows A/K/A David Barrows, Town of Preble, New York State Department of Taxation and Finance, B. B., A Minor, J. B., A Minor, D. B., A Minor,, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed by Order dated July 18, 2022 to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine

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whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of James J. Baranello, Esq. dated August 8, 2022, showing the sum of \$97,097.91 due as of February 1, 2022 and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

ORDERED, that the motion is granted without opposition; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report of James J. Baranello, Esq., dated August 8, 2022 be, and the same is, hereby in all respects ratified and confirmed; and it is further

[NOW, on motion by Stuart Frame, Esq., attorney for Plaintiff, it is hereby]

~~ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further~~

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Cortland County Courthouse, 46 Greenbush Street, Cortland, New York, by and under the direction of James J. Baranello, Esq., 39 Church Street, Cortland, NY 12414, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the

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Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED and DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute the Memorandum of Sale for the purchase of the property, in the form attached hereto and incorporated herein, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED and DECREED that in the event the first successful bidder fails to execute the Memorandum of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall deposit the down payment and proceeds of sale, as necessary, in the Referee's IOLA account, in accordance with CPLR §2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee

shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff (or its affiliate, as defined in paragraph (a) or subdivision 1 of section six-I of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that said Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law,

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taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in the Referee's IOLA account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The statutory fees of said Referee for sale of the real property; not to exceed \$750.00, pursuant to CPLR 8003(b), unless the real property shall sell for \$50,000 or more, in which event, the Referee may apply to the court for additional compensation. If a sale is cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate

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copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$97,097.91, the amount so reported as due aforesaid, together with interest at the contract thereon from the date computed to in the Referee's Report of Amount Due until the date of entry of this judgment, with interest thereafter at the statutory rate until the date of transfer of the Referee's deed.

Costs and Disbursements: \$ 4,136.87 hereby adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

~~Additional Allowance: \$ _____ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;~~

Attorney Fees: \$ 3,760.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

Additional Advances: The amount of any advances which plaintiff may make for taxes, insurance premiums or other advances necessary to preserve or maintain the premises pending the consummation of this foreclosure sale, whether such advances were made prior to or after entry of judgment, so long as such advances were not included in the Referee's Report of Amount Due

and are documented by receipts provided to the Referee, all together with interest thereon pursuant to the note and mortgage;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at said sale shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its/her/his assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First" , "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, ; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against The Estate of David B. Barrows aka David Barrows in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to the following, provided that they do not render title unmarketable: any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same any rights of tenants or persons in possession of the subject property; superior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the

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filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff has established standing in this action; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale,

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he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

~~ORDERED, that the "New Auction Rules for the Judicial District" annexed to this Judgment shall be incorporated into the Terms of Sale for auctions held during the COVID-19 health emergency.~~

Said property is commonly known as 1904 Preble Road, Preble, NY 13141.

~~That the subject property is vacant and secured. Said property was registered with the New York Department of Financial Services Foreclosure Database on November 12, 2020 and remains on the registry. Therefore, pursuant to AO 341/20, this action is not subject to any stay. The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A, together with the terms of Sale.~~

ENTER:

DATED: March 6 2023
Cortland, New York

MGM

Hon. Mark G. Masler, J.S.C.

Elizabeth Larkin



CJ-2023-00320

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JUDGMENT OF FORECLOSURE AN
13 Pages
Elizabeth Larkin, County Clerk

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**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]

At Part _____ of the SUPREME Court, held in the County of Cortland at the Cortland Courthouse thereof, on the 9th day of February, 2023

P R E S E N T : HON. JULIE A CAMPBELL
ACTING JUSTICE OF THE SUPREME COURT

-----X
Nationstar Mortgage LLC d/b/a Champion Mortgage Company,

Plaintiff(s),

INDEX NO.: EF16-513
RJI NO. 2017-0046-X
Mortgage Servicer as of 2022: PHH Mortgage Corporation
Telephone Number: 1-866-799-7724

ORDER CONFIRMING REFEREE REPORT AND JUDGMENT OF FORECLOSURE AND SALE MORTGAGED PROPERTY:
152 Groton Avenue,
Cortland, NY 13045
SBL#:86.48, 01, 22.000

-v-

Cortland County Treasurer, as Administrator for the Estate of William L. Diescher, Jr. a/k/a William L. Diescher III and William L. Diescher, Jr. a/k/a William L. Diescher III's unknown heirs and distributees, next-of-kin, distributees, executors, administrators, trustees, devisees, legatees, assignees, lienors, creditors, and successors in interest and generally all persons having or claiming under, by or through said defendant who may be deceased, by purchase, inheritance, lien or otherwise, any right, title or interest in the real property described in the complaint herein, Secretary of Housing and Urban Development, Kelly J. Willard, Deborah R. Diescher as Heir to the Estate of William L. Diescher, Jr. a/k/a William L. Diescher III, Deven Diescher n/k/a Chloe Mae Harrington as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Daniel Diescher as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., William Diescher, IV, as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Deborah N. Caugher as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Deanna Diescher a/k/a Deanna S. Diescher as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr.. United States of America-Internal Revenue Service, New York State



2023-00607
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COURT & TRUST

Elizabeth Larkin, County Clerk

Department of Taxation and Finance,

Defendant(s).

-----X

UPON the Summons, Complaint and Notice of Pendency filed in this action on August 24, 2016, the Notice of Pendency re-filed May 5, 2022, the Supplemental Summons, Amended Complaint and Amended Notice of Pendency filed on June 7, 2019, the Order for Service by Publication dated June 3, 2019, the Notice of Motion dated December 27, 2022, the affirmation by Linda P. Manfredi, Esq., the affidavit of merit and amount due by Blaze Randazzo, who is Assistant Secretary Nationstar Mortgage LLC d/b/a Champion Mortgage Company, duly sworn to on December 24, 2019, the affidavit of Karen Hidalgo who is Control Management Coordinator of PHH Mortgage Corporation, sworn to on December 6, 2022, together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint and/or Supplemental Summons and Amended Complaint in this action, and has voluntarily appeared either personally or by an attorney; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(I); and

UPON proof that non-appearing defendants Kelly J. Willard, Deborah R Diescher, Deborah R Diescher a/k/a Deborah Harrington, Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Deven Diescher n/k/a Chloe Mae Harrington, Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Daniel Diescher, Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., William Diescher, IV, Heir to the Estate of William L. Diescher III a/k/a

William L. Diescher, Jr., Deborah N Caughey, Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Deanna Diescher a/k/a Deanna S Diescher, Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., William L. Diescher, Jr. a/k/a William L. Diescher III's unknown heirs and distributees, next-of-kin, distributees, executors, administrators, trustees, devisees, legatees, assignees, lienors, creditors, and successors in interest and generally all persons having or claiming under, by or through said defendant who may be deceased, by purchase, inheritance, lien or otherwise, any right, title or interest in the real property described in the complaint herein, United States of America - Internal Revenue Service and New York State Department of Taxation and Finance are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Patrick Snyder dated December 19, 2022, showing the sum of \$539,317.89 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by, Linda P. Manfredi, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED that Mortgage Assets Management, LLC be substituted into the caption in the

place and stead of Plaintiff, and, following such substitution, that the Clerk of the Court amend the docket and electronic docket accordingly; and it is further

ORDERED, that this action be discontinued against Kelly J. Willard and the caption of the action be amended accordingly; and it is further

ORDERED that the caption shall read as follows:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

-----X Index No.: EF16-513
Mortgage Assets Management, LLC,

Plaintiff(s),

MORTGAGED PROPERTY:
152 Groton Avenue,
Cortland, NY 13045
COUNTY: CORTLAND
SBL #: 86.48,01,22.000

-v-

Cortland County Treasurer, as Administrator for the Estate of William L. Diescher, Jr. a/k/a William L. Diescher III and William L. Diescher, Jr. a/k/a William L. Diescher III's unknown heirs and distributees, next-of-kin, distributees, executors, administrators, trustees, devisees, legatees, assignees, lienors, creditors, and successors in interest and generally all persons having or claiming under, by or through said defendant who may be deceased, by purchase, inheritance, lien or otherwise, any right, title or interest in the real property described in the complaint herein, Secretary of Housing and Urban Development, Deborah R. Diescher as Heir to the Estate of William L. Diescher, Jr. a/k/a William L. Diescher III, Deven Diescher n/k/a Chloe Mae Harrington as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Daniel Diescher as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., William Diescher, IV, as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Deborah N. Caugher as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Deanna Diescher a/k/a Deanna S. Diescher as Heir to the Estate of William L. Diescher III a/k/a William L.

Diescher, Jr.. United States of America-Internal Revenue
Service, New York State Department of Taxation and
Finance,

Defendant(s).

-----X

And it is further

ORDERED, that the terms of the judgment of foreclosure and sale, pertaining to the location of the sale and the process by which said sale will be conducted, shall hereby conform to any changes imposed by the Judicial District so that the sale is to occur in accordance with the district sale rules in place as of the time of the sale; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at a public auction at
The Cortland County Courthouse, 46 Greenbush St., Cortland, NY 13045

by and under the direction of Patrick Snyder, Esq. 70 Port Watson Street

Cortland, NY 13045, 607-753-8050 who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in
The Cortland Standard

_____; and it is
further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2[c]) ("Disqualifications from Appointment"), and §36.2(d)

("Limitations on appointments based upon compensation"), and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale of the Referee has received a written bid and Terms of Sale from Plaintiff, its successors, and/or assigns, or its representative as if Plaintiff were physically present to submit said bid ; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of the sale the Referee shall accept a written bid from the Plaintiff or Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in ^{his attorney trust account t} many local banking institution insured by the FDIC in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all

taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of the sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in any local banking institution insured by the FDIC, and shall thereafter make the following payments in accordance with RPAPL§1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more OR in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 200.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$539,317.89 with interest at the note rate from November 1, 2022 until the entry of judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$ \$5,741.79 adjudged to the Plaintiff for costs and disbursements in this action, as taxed or calculated by the Clerk and inserted herein, with interest at the statutory judgment rate from the date of entry of this judgment;

~~Additional Allowance. \$ _____ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;~~

Attorney Fees: \$ 4,840.50 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the

property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against William L. Diescher, Jr. in accordance with RPAPL §1371 if permitted by law; and it further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility

agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or person in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; the Terms of Sale and purchaser assumes all risk of loss or damage to the premises from the date of the foreclosure sale until the date of closing and thereafter; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding the handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or terms of sale the Referee may place the property for resale without

prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within 6 months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof

Said property is commonly known as 152 Groton Avenue, Cortland, NY 13045.

The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.

DATED: February 9, 2023

ENTER: *fla Cpt*
Digitally signed by
Hon. Julie A. Campbell
2/9/2023, 12:47:12 PM


HON. JULIE A CAMPBELL, A.J.S.C.

Tammy R Barriger
Tammy Barriger - Deputy Clerk

Our File No.: 01-081599-F00





First American
MORTGAGE SERVICES

SCHEDULE A

DESCRIPTION OF MORTGAGED PREMISES

Title No.: [REDACTED]

ALL that tract or parcel of land, situate in the City of Cortland, County of Cortland and State of New York, known as 152 Groton Avenue in said city, and more particularly bounded and described as follows:

BEGINNING at a point on the north walk line of Groton Avenue, said point being located South 84 degrees 04 minutes East a distance of 76.4 feet from the intersection of the north walk line of Groton Avenue with the east lien of Helen Avenue;

THENCE RUNNING North 07 degrees 53 minutes 15 seconds East a distance of 108.97 feet to a point;

THENCE North 84 degrees 04 minutes West a distance of 11.65 feet to a point;

THENCE North 08 degrees 17 minutes East a distance of 128.25 feet to a point;

THENCE South 83 degrees 26 minutes East a distance of 74.80 feet to a point;

THENCE South 08 degrees 13 minutes West a distance of 25.12 feet to a point;

THENCE South 80 degrees 30 minutes East a distance of 7.65 feet to a point;

THENCE South 08 degrees 13 minutes West a distance of 50.63 feet to a point;

THENCE South 81 degrees 20 minutes East a distance of 26.65 feet to a point;

THENCE South 08 degrees 30 minutes West a distance of 158.94 feet to a point in the north walk line of Groton Avenue;

THENCE North 84 degrees 04 minutes West along the north walk line of Groton Avenue a distance of 96.20 feet to the place of BEGINNING.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND**

01-081599-F00

----- X
Mortgage Assets Management, LLC,

Plaintiff,

TERMS OF SALE

-against-

Index No.: EF16-513

Cortland County Treasurer, as Administrator for the Estate of William L. Diescher, Jr. a/k/a William L. Diescher III and William L. Diescher, Jr. a/k/a William L. Diescher III's unknown heirs and distributees, next-of-kin, distributees, executors, administrators, trustees, devisees, legatees, assignees, lienors, creditors, and successors in interest and generally all persons having or claiming under, by or through said defendant who may be deceased, by purchase, inheritance, lien or otherwise, any right, title or interest in the real property described in the complaint herein, Secretary of Housing and Urban Development, Kelly J. Willard, Deborah R. Diescher as Heir to the Estate of William L. Diescher, Jr. a/k/a William L. Diescher III, Deven Diescher n/k/a Chloe Mae Harrington as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Daniel Diescher as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., William Diescher, IV, as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Deborah N. Caugher as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., Deanna Diescher a/k/a Deanna S. Diescher as Heir to the Estate of William L. Diescher III a/k/a William L. Diescher, Jr., United States of America-Internal Revenue Service, New York State Department of Taxation and Finance,

Defendants.

----- X
The premises described in the within Affidavit of Publication (hereinafter referred to as the "premises") will be sold under the direction of Patrick Snyder, Esq., referee, pursuant to the following terms:

1. The referee shall accept the highest bid offered by a bidder. Ten percent (10%) of the amount of the bid accepted will be required to be paid to the referee in cash or certified or bank check at the time and place of sale for which the referee's receipt will be given. If the plaintiff should be the successful bidder the 10% deposit shall be deemed waived. The successful bidder shall

execute Terms of Sale immediately following the purchase of the property.

2. The residue of said purchase money, and any interest due pursuant to these terms, will be required to be paid by certified, bank or cashier's check to the said referee at 70 Port Watson Street Cortland, NY 13045, on the _____ day of _____, 20____ when the referee's deed will be ready. **TIME IS OF THE ESSENCE** to the purchaser only as to the closing date.

____ 3. The referee is not required to send any notice to the purchaser. If purchaser fails to be present at the time and place above specified to receive the deed, Purchaser will be in default. In the event that the Plaintiff or its attorneys shall deem it proper to extend the time for the completion of said purchase, such extension shall be granted only on the following terms and conditions: (a) Purchaser shall deposit an additional down payment of ten percent (10%) of the purchase price with the referee; and (b) Purchaser shall pay interest at the highest legal rate of interest on the total debt, from the date of sale up through and including the date of closing; and (c) any loss or damage to the premises during the period of such extension shall be borne by the purchaser. **TIME IS OF THE ESSENCE**, with respect to any extended closing date, as against the purchaser only.

4. The successful bidder is purchasing said property with the knowledge that said sale is NOT conditioned upon, or subject to, the bidder obtaining financing. Failure of the successful bidder to remit the balance of the bid within the time frames given by the plaintiff shall constitute a default and shall result in the forfeiture of the purchaser's deposit.

5. The purchaser of said premises, or any portion thereof, will at the time and place of sale, sign a memorandum of his/her purchase and an agreement to comply with the terms and conditions of sale herein contained.

6. Should the successful bidder fail to remit 10% of the bid or execute the Terms of Sale immediately following the bidding upon the subject property, the property shall be reoffered at auction on the same day.

7. In case any purchaser shall fail to comply with any of the above conditions of sale, the premises so struck down to him will be again put up for sale under the direction of said referee under these same terms of sale, without application to the Court. However, the referee reserves the right to sell the premises to the second highest bidder at said sale and forego putting the premises up for sale again. In the event of a default by purchaser(s) under the terms hereof, any and all deposits shall be retained by Plaintiff as liquidated damages and such purchaser shall be held liable for any deficiency there may be, above the retained down payment, for the sum for which said premises shall be struck down upon the sale and that for which they may be purchased on resale, and also for all costs and expenses occurring on such resale.

8. The referee is authorized to accept a written bid from the plaintiff or the plaintiff's attorneys, which bid will be considered as the opening bid, just as though the plaintiff appeared in person.

9. The premises are being sold in "as is" condition, without any representations either express or implied and subject to:

(a) All taxes, assessments and water rates which are, at this time, not a lien on the premises, together with such interest or penalties as may have lawfully accrued thereon to the date of payment;

(b) Rights of the public and others in and to any part of the mortgaged premises that lies within the bounds of any Street, alley, or highway; restrictions and easements of record;

(c) Any state of facts that an accurate, currently dated survey might disclose;

(d) Any and all tenancies, possessory interests and/or leases affecting said premises not made party defendants. It shall be the responsibility of the purchaser to evict or remove any parties in possession of the premises being foreclosed herein;

(e) The right of redemption of the United States of America, or any other federal governmental agency or entity within 120 days from the date of sale, if any;

(f) Any prior judgments, liens and mortgages of record;

(g) Rights of any defendants, pursuant to Civil Practice Law and Rules §317, §2003 and §5015, if any;

(h) Rights of any defendants pursuant to Real Property Actions and Proceedings Law section 1302-A

(i) If the premises are part of a condominium or Planned Urban Development ("PUD"), the declaration and the by-laws of the condominium pertaining to the premises; and

(j) Any work that may have been performed on the premises by the City of New York or any demand made by the City for any work that may result in charges by the New York City Department of Rent and Housing Maintenance, Emergency Services, The New York City Department of Environmental Protection for Water Tap Closing or any related work; and the New York City Department of Health, which liens are not of record at the time of sale;

(k) Any appeal of the underlying action or additional litigation brought by any defendant or its successors or assignee contesting the validity of this foreclosure.

10. Interest on the amount of any monies that are advanced subsequent to the date of sale, shall be paid by the purchaser to the date of the actual closing of title.

11. Title insurance, if any, shall be paid for by the purchaser.

12. All payments for taxes, assessments, water and sewer charges, which are, or may

become liens on the premises at the time of sale, shall be apportioned as of midnight of the day prior to closing, based on the fiscal period for which they are assessed.

13. All expenses of recording the Referee's deed, including transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser. No abstract of title or survey will be furnished. All abstract of title continuation and other charges, including deed stamps, are to be paid for by the purchaser.

14. The sale of the property is subject to plaintiff's right to negotiate a settlement with the mortgagors for redemption of the property and/or reinstatement of the loan up to the time of sale. In the event a settlement agreement is reached with the mortgagors prior to the auction of this property, and the sale inadvertently proceeds despite such settlement agreement, the sale of this property shall be deemed null and void and all deposits received shall be timely returned. The successful bidder shall have no further rights or recourse against plaintiff or the referee other than the return of the down payment.

15. Purchaser assumes all risk of loss or damage to the premises from the date of the auction until the date of closing and thereafter.

16. In the event a bankruptcy petition is filed, prior to the scheduled foreclosure sale, by any party with an interest in the subject premises, which bankruptcy filing stays the foreclosure sale of the subject premises, the down payment tendered by the successful bidder, at the sale, shall be refunded by the referee and the sale deemed null and void. The successful bidder shall have no further rights or recourse, against plaintiff or the referee, other than the return of the down payment.

17. In the event a bankruptcy petition is filed by any party with an interest in the subject premises subsequent to the scheduled foreclosure sale but prior to closing, plaintiff shall make an application to the bankruptcy court within a reasonable time to confirm the sale. In the event the bankruptcy court confirms the sale, a closing shall take place within 30 days of the confirmation. In the event the bankruptcy court does not confirm the sale, the down payment tendered by the successful bidder at the sale shall be refunded by the referee and the sale deemed null and void. The successful bidder shall have no further rights or recourse, against plaintiff or the referee, other than the return of the down payment.

Dated:

Patrick Snyder, Esq.
Referee

(a)
 At Part of the Supreme Court held in
 the County of Cortland, at the Cortland
 Courthouse thereof, on the 9th day of
January, 2023.

PRESENT: Hon. Hon. Mark G Masler
JUSTICE OF THE SUPREME COURT

KeyBank National Association,

Plaintiff(s),

v.

Cortland County Treasurer, as Limited Administrator of the
 Estate of John G. Muntean a/k/a John Muntean; Linda
 Muntean; Helene Holtz a/k/a Dolly Holtz; Nicholas
 Muntean; Marisa Muntean, if she be living or, if she be dead,
 her spouse, heirs, devisees, distributees and successors in
 interest, all of whom and whose names and places of
 residence are unknown to Plaintiff; GHS Federal Credit
 Union; Fortuna Energy Inc.; Town of Freetown; State of New
 York,

Defendant(s).

INDEX NO. EF19-296

RS# No. 2021-0037-M

**ORDER CONFIRMING
 REFEREE REPORT AND
 JUDGMENT OF
 FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
 1965 East Freetown Texas
 Valley Road
 Freetown a/k/a Marathon, NY
 13803

SBL #: Section 131.00 Block
 04 Lot 10.000

Mortgage Servicer:
 KeyBank, N.A.

Mortgage Servicer Phone #:
 1-866-325-9653

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 8th
 day of March, 2019, on the Additional Notice of Pendency filed on the 10th day of November,
 2021, the Notice of Motion dated December 5, 2022, the affirmation by Barbara Dunleavy, Esq.,
 the affidavit of merit and amount due by Benjamin Wood, who is Bank Officer, duly sworn to on
 December 16, 2021, together with the exhibits annexed thereto, all in support of Plaintiff's
 motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons
 and Complaint in this action, and has not served any answer to the Complaint or otherwise



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 COURT & TRUST
 13 Pages
 Elizabeth Larkin, County Clerk

appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendants, Linda Muntean and Helene Holtz a/k/a Dolly Holtz and Nicholas Muntean and Marisa Muntean and GHS Federal Credit Union and Fortuna Energy Inc. and Town of Freetown and State of New York and Cortland County Treasurer, as Limited Administrator of the Estate of John G. Muntean a/k/a John Muntean, were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants, Linda Muntean and Helene Holtz a/k/a Dolly Holtz and Nicholas Muntean and Marisa Muntean and GHS Federal Credit Union and Fortuna Energy Inc. and Town of Freetown and State of New York and Cortland County Treasurer, as Limited Administrator of the Estate of John G. Muntean a/k/a John Muntean, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Edward W. Goehler Esq. dated October 24, 2022, showing the sum of \$90,547.37 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON reading the report of Elizabeth Frani, Esq., Guardian Ad Litem and Military Attorney, appointed pursuant to an Order of this Court, and the various other papers of said Guardian previously filed herein; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by LOGS Legal Group LLP *f/k/a* Shapiro, DiCaro & Barak, LLC, attorneys of record for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further **ORDERED, ADJUDGED AND DECREED**, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the pursuant to the Terms of Sale attached as Exhibit A hereto (the Terms of Sale) RPAPL be sold within 90 days of the date of this Judgment, in one parcel, at a public auction¹ at the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of Edward W. Goehler, Esq., 11 Groton Avenue, Cortland, NY 13045, (607)758-8080 who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in *the Cortland Standard*; and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject

property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in the Referee's I.O.L.A. account maintained for legal clients, in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents or water rates, which are, or may become, liens on the

property at the time of sale with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in their I.O.L.A. account maintained for legal clients, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$90,547.37 with interest at the note rate from November 19, 2021 until the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$7,936.18 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$3,475.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and funds shall be deposited with the Clerk of the Court; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment

thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due to Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against John G. Muntean, now deceased, unless discharged in bankruptcy, in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility

agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that the Guardian ad Litem and Military herein, Elizabeth Ann, Esq. 18390 be paid the sum of \$250.00 for services rendered herein.

Said property is commonly known as 1965 East Freetown Texas Valley Road, Freetown
a/k/a Marathon, NY 13803.

~~The legal description of the mortgaged property referred to herein is annexed hereto as
Schedule A.~~

ENTER

DATED: January 9, 2023
Cortland, New York


Hon. Hon. Mark G Masler
Justice of the Supreme Court





CJ-2023-00030
01/09/2023 02:16:14 PM
JUDGMENT OF FORECLOSURE AND
13 Pages
Elizabeth Larkin, County Clerk

Attorney certification pursuant
to 22NYCRR §130-1.1-a
is affixed to inside cover.

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature _____

[END OF DOCUMENT]